

5. Where any pronoun or verb is used in relation to an expression in the singular or the plural for which an expression in the plural or the singular, as the case may be, is directed by the foregoing provisions of this Schedule to be substituted, the plural of the pronoun or verb shall be substituted for the singular or the singular for the plural, as the case may be.

6TH SCH.
—cont.

6. Where any section, or any subsection or paragraph of a section or Schedule, is by this Schedule or by section fifty-seven of this Act directed to be omitted, any subsequent sections or any subsequent subsections or paragraphs in the section or Schedule shall be renumbered to run consecutively, and references in this Act to any section, subsection or paragraph so renumbered shall be amended accordingly."

CHAPTER 49.

An Act to authorise the making of schemes with respect to the development and planning of land in Scotland, whether urban or rural, and in that connection to repeal and re-enact with amendments the enactments relating to town planning; to provide for the protection of rural amenities and the preservation of buildings and other objects of interest or beauty; to facilitate the acquisition of land in Scotland for garden cities; and to make other provision in connection with the matters aforesaid.

[12th July 1932.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Scope of Planning Schemes.

1. A scheme may be made under this Act with respect to any land, whether there are or are not buildings thereon, with the general object of controlling the development of the land comprised in the area to which the scheme applies, of securing proper sanitary conditions, amenity and convenience, and of preserving existing buildings or other objects of architectural,

Scope of
planning
schemes.

historic or artistic interest and places of natural interest or beauty, and generally of protecting existing amenities whether in urban or rural portions of the area.

Authorities.

Local
authority
for purposes
of Act.

19 & 20
Geo. 5. c. 25.

2.—(1) Subject to the provisions of this section, the local authority for the purposes of this Act shall be, in the case of a large burgh, the town council thereof, and in the case of a county (including any small burghs therein) the county council, or, if the county is in combination with another county for the purposes mentioned in subsection (7) of section ten of the Local Government (Scotland) Act, 1929, the joint county council of the combined county; and the district of the local authority shall be the burgh or the county or the combined county, as the case may be.

(2) Where, upon consideration of a representation by the town council of a small burgh, the Department, after consultation with the county council, are of opinion that it is expedient that the town council should have power to prepare a scheme with respect to any land within the burgh, the Department may, by order, transfer to the town council any of the powers and duties of the county council under this Act with respect to such land, and, where any power or duty has been so transferred, any reference in this Act to a local authority (other than in section forty-eight) shall, in relation to that power or duty, be construed as a reference to the town council.

(3) The Department may at any time revoke, vary, or amend any order made by them under this section.

(4) Any order made under this section may contain such incidental supplementary and consequential provisions as appear necessary for the purpose of the order.

Appoint-
ment of
joint com-
mittees.

3.—(1) Where two or more authorities, being local authorities, are desirous of acting jointly in the preparation or adoption of a scheme, they may concur in appointing a joint committee for the purpose and in delegating, with or without restrictions, to that committee any powers, other than the power to borrow money or levy a rate, which any of the constituent authorities might exercise for the purpose, and in imposing on that committee any duties which any of the constituent authorities are required to discharge for the purpose.

(2) Every person appointed to represent a constituent authority on a joint committee must be a member of one at least of the constituent authorities, but the same person may be appointed to represent two or more of those authorities.

(3) A constituent authority may appoint their representative on a joint committee to serve as such for so long as he holds office as a member of any one of the constituent authorities, or for any shorter period.

(4) A joint committee may, with the consent of a majority of the constituent authorities, co-opt persons, whether members of a constituent authority or not, to serve as additional members of the committee, so, however, that at least three-fourths of the members of the joint committee shall be persons who are appointed members of that committee.

(5) A joint committee may appoint such and so many sub-committees, consisting either wholly or partly of members of the committee, as the committee think fit, so, however, that at least three-fourths of the members of a sub-committee shall be persons who are appointed members of the joint committee.

(6) The expenses of a joint committee shall be defrayed by the constituent authorities, or some or one of them, as they may agree, and if any question arises as to the authorities or authority by whom, or the proportions in which, any such expenses are to be defrayed, that question shall be determined by the Department.

4.—(1) If it appears to the Department to be expedient that two or more authorities, being local authorities, should act jointly in the preparation or adoption of a scheme, they may, at the request of any one or more of them, by order provide for the constitution of a joint committee for the purpose and transfer to the committee any powers, other than the power to borrow money or levy a rate, and duties which any of the constituent authorities might exercise and discharge for the purpose :

Combina-
tion of
authorities
for pur-
poses of
schemes.

Provided that, before making any such order, the Department shall, unless all the authorities affected thereby assent to the making thereof, cause a local inquiry to be held.

(2) An order under this section may provide for the application, with any necessary modifications,

to the committee thereby constituted of any of the provisions of the last preceding section, and may, if it appears to the Department to be necessary, provide for the dissolution of any joint committee constituted under the foregoing provisions of this Act or any repealed enactment relating to town planning.

Power to
alter con-
stitution of
joint com-
mittees.

5.—(1) Where a joint committee have been appointed, whether under section three or section four of this Act or under any repealed enactment relating to town planning, any local authority whose district adjoins the district of any of the constituent authorities shall at any time, if they desire to be represented on the joint committee and, if the Department consider that they ought to be so represented, be entitled to appoint such number of additional members of the committee and shall delegate to the committee such powers, other than the power to borrow money or levy a rate, and duties as may be agreed with the joint committee or, failing agreement, may be determined by the Department, and if at any time it appears to the Department to be expedient that any such local authority as aforesaid who have not claimed to be represented on the joint committee should be so represented, they may by order make such alteration in the constitution of the committee and transfer to the committee such of the powers, other than as aforesaid, and duties of the said local authority as they think fit.

(2) A local authority who by virtue of this section become represented on a joint committee shall for the purposes of subsections (2) to (6) of section three of this Act be deemed to be a constituent authority, but the alteration so made in the constitution of the committee shall not affect the identity of the committee, the validity of any previous proceedings thereof or the validity of any resolution previously passed by any of the constituent authorities.

Procedure with respect to Schemes.

Preparation
or adoption
of schemes.

6.—(1) Subject to the provisions of this section, a local authority or a joint committee duly authorised in that behalf may, by resolution, decide—

(a) to prepare a scheme with respect to any land within, or in the neighbourhood of, the

district of the authority or, as the case may be, the districts of the constituent authorities; or

- (b) to adopt, with or without modifications, a scheme proposed by all or any of the owners of any such land.

(2) A resolution passed under the foregoing subsection shall not take effect unless and until it is approved by the Department, and the Department in giving their approval may vary the extent of the land to be included in the area to which the resolution is to apply, but the Department shall not approve any such resolution unless they are satisfied—

- (a) in the case of any land already built upon, that public improvements are likely to be made, or other development is likely to take place, within such a period of time and on such a scale as to make the inclusion of the land in a scheme expedient, or that the land comprises buildings or other objects of architectural, historic, or artistic interest, or that the land is so situate that the general object of the scheme would be better secured by its inclusion;
- (b) in the case of land which is neither already built upon nor in course of development, nor likely to be developed, that the land is so situated in relation to land which is already built upon, or in course of development, or on which development is likely to take place, as to make its inclusion in a scheme expedient, or that it comprises objects or places of natural interest or beauty:

Provided that nothing contained in this subsection shall prevent the Department from approving a resolution adopting a scheme comprising land in respect of which they are not satisfied that the conditions specified in this subsection are complied with, if the scheme has been proposed by the owners of not less than two-thirds of that land and approved by not less than three-fourths of the owners of that land.

(3) A local authority or joint committee, before passing a resolution which will apply to—

- (i) any land not within the district or, as the case may be, districts aforesaid; or

- (ii) any land to which either a resolution to prepare or adopt a scheme, or a scheme, being a resolution or scheme passed or made by another authority or committee, applies,

shall consult with every authority or committee who will be affected thereby.

(4) A resolution of a local authority or joint committee to prepare a scheme may be revoked, either as to the whole or any part of the area to which it applies, by a subsequent resolution of the authority or committee, or, if the Department think that in the special circumstances of the case the resolution should be so revoked, by order of the Department :

Provided that—

- (a) a resolution under this subsection shall require the approval of the Department, and the Department may refuse to approve it except subject to such conditions as they think fit to impose; and
 - (b) before making an order under this subsection the Department shall inform the authority or committee, as the case may be, of the order which they propose to make and, if within twenty-eight days the authority or committee request them so to do, shall cause a local inquiry to be held into the matter.
- (5) In giving their approval to a resolution under the last foregoing subsection, and in making an order thereunder, the Department shall by the imposition of conditions or, as the case may be, by the terms of their order secure that—
- (i) any person whose property has been injuriously affected by reason that since the commencement of this Act the Department have refused, on an appeal made to them under an interim development order, to grant an application for permission to develop the property, or that the Department have imposed any conditions on the grant of an application made since that date; and

- (ii) any person who, for the purpose of complying with any conditions imposed on the grant of such an application, has since the commencement of this Act incurred expenditure which is rendered abortive by the revocation of the resolution to prepare a scheme,

shall be entitled, if he makes a claim for the purpose within twelve months from the date when the resolution is approved or the order is made, as the case may be, to claim compensation from such authority as may be specified in the condition or order :

Provided that the Department shall not secure a right to compensation in respect of any injurious affection of property arising from refusal to permit any development, or from the imposition of any conditions, where they are satisfied that, if a scheme had come into operation containing provisions which would have had the effect of prohibiting that development, or under which those conditions could have been enforced, no right to compensation would have arisen under this Act in respect of the injurious affection of the property by the coming into operation of those provisions.

(6) Where a resolution or resolutions to prepare a scheme or schemes has or have taken effect, the local authority or joint committee who passed the resolution or resolutions may prepare one scheme for dealing with the area to which the resolution applies or with the aggregate area to which the resolutions apply, as the case may be, or, if they think fit, may prepare different schemes for dealing with different parts of that area or aggregate area.

(7) Where under the last foregoing subsection a local authority or joint committee have power to prepare a scheme for any area, they may decide in lieu of proceeding with the preparation of a scheme to adopt, with or without modifications, a scheme for that area or any part thereof proposed by all or any of the owners of land in that area or part thereof. A decision under this subsection shall not be deemed for the purposes of this Act to be a resolution to adopt a scheme, but as from the date of the decision the resolution or resolutions to prepare a scheme or schemes shall, so far as concerns the area or part of an area to which the decision relates, have effect as

if the resolution or resolutions had been for the adoption of a scheme.

(8) The foregoing provisions of this section shall not apply in the case of a resolution to prepare a scheme varying an existing scheme or to prepare a supplementary scheme as defined by this Act.

Notices in relation to the making of, or under, schemes.

7.—(1) Where a resolution to prepare or adopt a scheme has taken effect, the local authority or joint committee who passed the resolution shall within the period specified in the next succeeding subsection—

- (a) publish a notice of the resolution in the *Edinburgh Gazette* and at least once during each of two successive weeks, with an interval between each publication of at least six clear days, in a local newspaper; and
- (b) serve in the prescribed manner a like notice on the owner (according to the valuation roll) of every land and heritage to which the resolution applies.

In this subsection the expression “the valuation roll” means the valuation roll for the year current at the time when the notice is given, or, if the notice is given after the fifteenth day of May and before the first day of October in any year, the valuation roll for the preceding year.

(2) A notice required by the last preceding subsection to be published and served in the manner therein mentioned shall be published in the *Edinburgh Gazette* and once at least in a local newspaper within fourteen days, and be served within six months, after the date when the resolution takes effect, and shall contain—

- (a) a concise statement of the effect of the resolution, together with information as to the place and times at which a map defining the area to which the resolution applies may be inspected; and
- (b) a statement as to the right of persons concerned to have their names and addresses registered for the purpose of the service of subsequent notices; and
- (c) in the case of a notice to be served on an owner, a direction that the recipient of the notice will, if he is not at the time the owner of the property, transmit it to the owner.

(3) For facilitating the service of subsequent notices, the local authority or joint committee by whom the resolution to prepare or adopt a scheme was passed shall compile a register of names and addresses in accordance with the provisions hereafter in this section contained.

(4) Until the coming into operation of the scheme it shall be the duty of the authority by whom the register was compiled to keep and maintain the register, and after the coming into operation of the scheme it shall be kept and maintained by such authority as may be provided in the scheme, and the scheme may provide for different portions of the register being kept and maintained by different authorities and for all authorities concerned having reasonable access to any part of the register, and shall contain such provisions with respect to the keeping and maintenance of the register as appear to be necessary, including provisions for securing that information as to the custody of the register, or the different portions thereof, is given to persons concerned.

(5) Any person who is, or claims to be, an owner of any property in the area to which the resolution applies, and any association representing owners of property within the district of the local authority or the districts of the local authorities represented on the joint committee by whom the resolution was passed, and any local association representing business or industry, may from time to time by notice in writing, specifying in the case of an owner the property of which he claims to be the owner, require the local authority or committee who for the time being have charge of the register, or of the appropriate portion thereof, to register his or their name and address free of charge, in the case of an owner, in respect of the property specified in the notice and, in the case of an association, in respect of the district of the local authority or the districts of the local authorities represented on the joint committee by whom the resolution was passed.

An authority or committee shall comply with any notice given to them under this subsection, and shall inform the person or association concerned that his or their name and address have been duly registered.

(6) Where by virtue of this Act or any regulation made thereunder a public notice is required to be given of any thing done or proposed to be done, or of any action

taken or proposed to be taken, by a local authority, joint committee, or responsible authority, or the Department, under the resolution, or under or by virtue of any scheme made in pursuance thereof, a copy of the notice shall be served on every person whose name and address appear in the register in respect of any property which will be affected, and on every association whose name and address appear in the register, and, if any subsequent resolution for the preparation or adoption of a scheme is passed by the local authority or joint committee who passed the original resolution, or by any authority represented on that committee and is approved by the Department, notice of the resolution shall be given to every association whose name and address appear in the register :

Provided that—

- (a) at any time after the expiration of three years from the time when a request for registration or re-registration was last made by any person or association, the authority having charge of the register or of the relevant portion thereof may, by notice in writing, require that person or association to state within a period of one month whether he or they desire that his or their name and address shall be registered afresh, and unless within the said period a request for re-registration is duly made, the said authority may remove the name of that person or association from the register; and
 - (b) the authority may at any time, with the consent of any person or association, remove the name of that person or association from the register.
- (7) The provisions of this section—
- (a) shall not apply in relation to the service of any notice relating to the compulsory acquisition of land under this Act; and
 - (b) shall apply in relation to the service of notices in connection with a resolution to prepare or adopt a supplementary scheme under this Act or a scheme varying an existing scheme to such extent only, and subject to such modifications, if any, as may be prescribed.

8.—(1) A scheme prepared or adopted by a local authority or joint committee shall require the approval of the Department, and the Department may approve any scheme either with or without modifications :

Approval,
validity,
coming into
effect,
variation
and revoca-
tion of
schemes.

Provided that—

- (i) where the resolution passed by the local authority or joint committee in pursuance of section six of this Act was a resolution to prepare a scheme, the draft scheme prepared in pursuance of the resolution shall, before submission to the Department, be adopted by resolution of the local authority or joint committee at a meeting of which special notice indicating the business to be transacted has been given to each member; and
- (ii) before making any modifications in a scheme, the Department shall inform the local authority or joint committee, as the case may be, of the modifications which they propose to make, and shall cause a local inquiry to be held into the matter if within twenty-eight days the local authority or joint committee request them so to do.

(2) The provisions of Parts I and II of the First Schedule to this Act shall have effect with respect to the laying of schemes before Parliament, the validity of schemes, and the dates on which schemes are to come into operation.

(3) A scheme may be varied, otherwise than by way of extension of the area to which the scheme applies, or may be revoked, by a subsequent scheme prepared, or adopted, and approved in accordance with this Act and any regulations made thereunder.

(4) The Department, on an application made in accordance with the provisions of the next succeeding subsection, may, if they think that in the special circumstances of the case a scheme ought to be varied or revoked, themselves make a scheme varying or revoking that scheme :

Provided that the Department shall not make any variation in a scheme unless they are satisfied that it will not involve substantial additional expenditure by

any responsible authority under the scheme who object to the variation being made.

A scheme made by the Department under this subsection shall, for the purposes of this Act, be deemed to have been prepared or adopted by such authority or committee as may be specified in the scheme.

(5) An application to the Department under this section may be made by any authority who are a responsible authority for any purposes of the scheme which it is proposed to vary or revoke, or by any joint committee appointed for the purpose of preparing a scheme in respect of an area comprising land to which the first mentioned scheme applies, or by any other authority or person who appear or appears to the Department to be concerned.

Supple-
mentary
schemes for
areas com-
prised in
regional
schemes.

9.—(1) In any case where a regional scheme is in operation, any local authority or joint committee may by resolution decide to prepare a scheme with respect to any land to which the regional scheme applies, being land in, or in the neighbourhood of, the district of the local authority or, as the case may be, the districts of any of the constituent authorities, or to adopt, with or without modifications, a scheme proposed by all or any of the owners of any such land.

(2) A scheme prepared or adopted under the preceding subsection (in this Act referred to as a "supplementary scheme") shall incorporate, with or without modifications, all such provisions of the regional scheme as relate to the area to which the supplementary scheme applies and are not inconsistent with the provisions thereof, and may include such additional provisions as appear to be necessary or desirable.

(3) A resolution to prepare or adopt a supplementary scheme shall not affect the operation of the regional scheme or the powers of any authority thereunder, but as from the date on which the supplementary scheme comes into operation it shall, so far as respects the area to which it applies, have the effect of revoking the regional scheme.

(4) In this section the expression "regional scheme" means a scheme made, whether under this Act or under any Act repealed by this Act, by a joint committee.

Interim Development of Land.

10.—(1) The Department shall make a general order with respect to the interim development of land within the areas to which resolutions to prepare or adopt a scheme apply and may make special orders with respect to the interim development of any such land in any particular area. Interim development orders.

For the purposes of this section the expression “interim development” means development between the date on which the resolution takes effect, and the date of the coming into operation of the scheme.

(2) An order made under the preceding subsection (in this Act referred to as “an interim development order”) may itself permit the development of land either unconditionally or subject to any condition specified in the order, or may empower any authority so specified to permit the development of land in accordance with the terms of the order.

(3) Where an application for permission to develop land is made to the specified authority in manner provided by the order, the authority may, subject to the terms of the order, grant the application unconditionally or subject to such conditions as they think proper to impose, or may refuse the application, and they shall be deemed to have granted the application unconditionally unless within two months from the receipt thereof, or within such longer period as the applicant may agree in writing to allow, they give notice to him that they have decided to the contrary, stating their reasons for so doing:

Provided that—

- (a) an application for permission to erect a new building on the site of an existing building, or on the site of a building which was standing within two years before the date on which a resolution takes effect, if made before or within two years after the destruction or demolition of that previous building, or within twelve months after the date on which the resolution takes effect, whichever period last expires, shall not be refused and conditions shall not be imposed, if the effect of the refusal or imposition of conditions would be to render

it impossible for the applicant to erect a building having a cubic content above the level of the ground as great as that of the previous building or, in the case of a previous building used for business or industry, to erect a building having as great a cubic content above the level of the ground and as great a superficial area on the ground floor as those of the previous building, except where either—

(i) the new building would not conform with a provision proposed to be inserted in the scheme for fixing, in relation to any street or proposed street, a line beyond which no building in that street or proposed street may project; or

(ii) it is proposed to include the site of the new building or part thereof in an area to be reserved by the scheme for a purpose the carrying out of which in the future would necessitate the removal or the alteration of the new building;

(b) an application for permission to use any building which is erected in substitution for an existing building, or other such previous building as aforesaid, and is commenced within two years after the destruction or demolition of the previous building, for any purpose of the same or similar character as that for which the previous building was last used before its destruction or demolition shall not be refused unless such a use would be of a noxious or otherwise offensive character.

(4) In any case where an application under the last preceding subsection is refused or is granted subject to conditions, the authority may, if they think fit, make a contribution, the payment of which shall not be unreasonably delayed, towards any damage or expense which the applicant shows to their satisfaction that he is likely to suffer by reason of their decision.

(5) An applicant who is aggrieved by the refusal of the authority to consent to his application, or by any

conditions imposed by them, may within twenty-eight days from the date on which he received notice of the decision of the authority, or such longer period as the Department may allow, appeal to the Department, and the Department, after taking into consideration any offer by the authority to make a contribution under the last preceding subsection, may dismiss or allow the appeal, either unconditionally or subject to such conditions as they think proper to impose, but the Department, before deciding any such appeal, shall, if either the appellant or the authority so desire, afford them an opportunity of appearing before and being heard by a person appointed by the Department for the purpose.

The decision of the Department on an appeal under this subsection shall be final and shall have effect as if it were a decision of the authority.

(6) Where an appeal to the Department under the last preceding subsection is dismissed on the ground only that the land to which the appeal relates, though otherwise suitable for immediate development, ought to be reserved by the scheme for a public open space, and the Department are satisfied that, if the appeal had been allowed, the development for which permission was sought would have taken place within a reasonable period, the appellant, if he is entitled to dispose of the fee simple of the land with vacant possession, may, by notice in writing given to the authority within six months from the date of the Department's decision, require the authority to purchase the land at a price to be agreed, or in default of agreement to be determined in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, and the authority shall purchase the land accordingly.

9 & 10 Geo. 5.
c. 57.

(7) Where expenditure is necessarily incurred on buildings or works in order to comply with a condition confirmed or imposed by the Department on an appeal to them under this section, and the condition was confirmed or imposed in anticipation of the reservation of land for a public purpose or the execution of works under the scheme, then, if the scheme as proposed to be approved by the Department does not contain a provision for such reservation or execution of works, and the Department, on representations made to them, are satisfied that the expenditure which has been so incurred

is wholly or partly abortive on that account, the scheme shall provide that the person by whom the expenditure was incurred shall be entitled, if he makes a claim in that behalf within twelve months from the date on which the scheme comes into operation, to recover as compensation from the responsible authority so much of that expenditure as is abortive.

(8) An interim development order may empower any authority specified in the order, with the consent of the Department, to suspend the operation of any enactments contained in local Acts and of any orders, byelaws or regulations, under whatever authority made, where it is expedient in order to promote the development permitted by or under the order.

(9) The foregoing provisions of this section shall not apply in any case where the scheme for the preparation or adoption of which a resolution has taken effect is a supplementary scheme or a scheme varying an existing scheme.

Contents and Effect of Schemes.

Contents of schemes, and authorities responsible for enforcing them.

11.—(1) Every scheme shall define the area to which it applies, and specify, in accordance with the provisions of the next succeeding subsection, the authority or authorities who are to be responsible for enforcing and carrying into effect the provisions of the scheme, and—

- (a) shall contain such provisions as are necessary or expedient for prohibiting or regulating the development of land in the area to which the scheme applies and generally for carrying out any of the objects for which the scheme is made, and in particular for dealing with any of the matters mentioned in the Second Schedule to this Act; and
- (b) where it is expedient in order to promote proper planning or development, may provide for suspending the operation of any provision, whether contained in a statute or in an order, byelaw, or regulation, under whatever authority made, in so far as that provision is similar to, or inconsistent with, any of the provisions of the scheme.

(2) A scheme may—

- (a) specify as the responsible authority for all purposes of the scheme any one of the following authorities, that is to say, the local authority within whose district any land to which the scheme applies or any neighbouring land is situate, or a joint body specially constituted by the scheme; or
- (b) specify any two or more such authorities as aforesaid as the responsible authorities for different purposes of the scheme or as respects different parts of the area to which the scheme applies; or
- (c) in the case of a scheme which applies to land within a small burgh, specify the town council of the burgh as the responsible authority for all or certain purposes of the scheme as respects such land or part thereof.

(3) Where a scheme provides for a joint body being the responsible authority for any of the purposes of the scheme, it shall contain all such provisions as appear to be necessary or desirable in relation to the constitution and incorporation of the joint body and for conferring and imposing powers and duties on them, and making provision with respect to the purposes for which and the manner in which they may borrow money and the manner in which their expenses are to be defrayed, and may authorise them to co-opt additional members, so, however, that at least three-fourths of the members of the joint body shall be persons who are members of a constituent authority of the joint body.

12.—(1) The provisions to be inserted in a scheme with respect to buildings and building operations may include provisions—

- (a) prescribing the space about buildings;
- (b) limiting the number of buildings;
- (c) regulating, or enabling the responsible authority to regulate, the size, height, design and external appearance of buildings;
- (d) imposing restrictions upon the manner in which buildings may be used, including, in the case

Provisions
in schemes
with respect
to buildings
and building
operations.

of dwelling-houses, the letting thereof in separate tenancies; and

- (e) prohibiting building operations, or regulating such operations in respect of matters other than those specified in this subsection :

Provided that, where a scheme contains a provision enabling the responsible authority to regulate the design or external appearance of buildings, the scheme must also provide that any person aggrieved by any decision of the responsible authority under the provision aforesaid may appeal against the decision either to the sheriff or to a tribunal to be constituted for the purpose under the scheme, as may be thereby provided, and the grounds on which such an appeal may be brought shall include the ground that compliance with the decision would involve an increase in the cost of the building which would be unreasonable having regard to the character of the locality and of the neighbouring buildings.

- (2) The provisions to be inserted as aforesaid may—

- (a) differ as respects different parts of the area to which the scheme applies; and
- (b) be made applicable, either with or without modifications, to existing buildings as well as to buildings which are not existing buildings; and
- (c) be imposed as permanent provisions, or as provisions operating only pending the coming into operation of an order under the provisions hereafter in this Act contained with respect to general development orders.

(3) No provision contained in a scheme with respect to buildings shall apply in relation to any building or the erection of any building which is, or is to be, occupied together with land which is used mainly or exclusively for agriculture, whether as arable, meadow, pasture ground or orchard, or for the purposes of a plantation or a wood, or for the growth of saleable underwood, and is, or is to be, used for any of those purposes, unless the site of the building is reserved by the scheme for any purpose, the carrying out of which in the future would necessitate the removal or the alteration of the building.

13.—(1) Subject to the provisions of this section, the responsible authority may at any time—

Power to
enforce and
carry into
effect
schemes.

- (a) remove, pull down or alter, so as to bring into conformity with the provisions of the scheme, any existing building or other existing work which does not conform to those provisions, or the demolition or alteration of which is necessary for carrying the scheme into effect; or
- (b) remove, pull down or alter, so as to bring into conformity with the provisions of the scheme, any building or other work, not being an existing building or an existing work, which does not conform to those provisions, or in the erection or carrying out of which any provision of the scheme has not been complied with; or
- (c) where any building or land is being used in such a manner as to contravene any provision of the scheme, prohibit it from being so used; or
- (d) where any land has since the material date been put to any use which contravenes any provision of the scheme and is not an existing use, reinstate the land; or
- (e) execute any work which it is the duty of any person to execute under the scheme in any case where delay in the execution of the work has occurred and the efficient operation of the scheme has been or will be thereby prejudiced.

(2) Before taking any action under this section the responsible authority shall serve a notice in the prescribed manner on the owner and on the occupier of the building or land in respect of which the action is proposed to be taken and on any other person who, in their opinion, may be affected thereby, specifying the nature of, and the grounds upon which they propose to take, that action.

(3) Where a building or work which the responsible authority propose to remove, pull down or alter under this section is an existing building or an existing work, or where the use of a building or land which they propose to prohibit is an existing use, the authority shall serve

the notices for which provision is made by the last preceding subsection not less than six months before they take any action and, in any other case, they shall serve those notices not less than twenty-eight days before they take any action.

(4) If any person served with such a notice as aforesaid desires to dispute any allegation contained therein, he may, by giving notice of appeal within twenty-eight days from the date of the service of the original notice on him, appeal to the sheriff, and no action shall be taken by the authority under subsection (1) of this section pending the final determination or withdrawal of the appeal.

(5) If on any such appeal the sheriff is satisfied that the responsible authority are entitled to take the proposed action on the grounds specified in the notice, he shall dismiss the appeal and shall by his order empower the responsible authority, after the expiration of the period aforesaid of six months or twenty-eight days, as the case may be, to remove, pull down, or alter the building or work, or reinstate the land or execute the required work, or, as the case may be, shall by his order prohibit the building or land from being used in contravention of the scheme after the period aforesaid, but, if he is not so satisfied, he shall allow the appeal:

Provided that the sheriff may, if he thinks fit, direct that an order made by him under this subsection shall, instead of taking effect after the expiration of the period aforesaid of six months or twenty-eight days, take effect at such later date as he thinks fit, being a date not more than six months or twenty-eight days, as the case may be, from the date of the order.

The sheriff shall make such order in regard to the expenses of an appeal under subsection (4) of this section as he may think proper.

(6) Except where the responsible authority remove, pull down or alter a building or work which is an existing building or an existing work, any expenses reasonably incurred by the responsible authority under subsection (1) of this section may be recovered summarily as a civil debt from the person in default:

Provided that, on any proceedings for the recovery of any such expenses, the defender shall not be entitled

to raise by way of defence any matter which might have been raised by him on an appeal under subsection (4) of this section.

(7) A person who uses any building or land in a manner prohibited under this section shall be liable on summary conviction to a fine not exceeding fifty pounds and to a further penalty not exceeding twenty pounds in respect of each day on which he so uses the building or land after conviction.

*Powers as to matters not finally dealt with
by Scheme.*

14.—(1) There may be inserted in any scheme a provision empowering any responsible authority, or any local authority concerned who are not a responsible authority, to make orders (in this Act referred to as “supplementary orders”), or to adopt, with or without modifications, supplementary orders proposed by owners of land, for supplementing the provisions of the scheme, as respects any part of the area to which it applies, by adding to it provisions with respect to any matters for which provision may be made by a scheme and for varying it in so far as may be necessary or expedient. Supplementary orders.

(2) The provisions of this Act with respect to the approval of schemes by the Department, the laying of schemes before Parliament, and the validity and date of operation of schemes shall apply in relation to a supplementary order, as if it were a scheme.

(3) A supplementary order may be revoked or varied by a subsequent supplementary order made by the same authority, but so long, and in so far, as it continues to be operative, shall be deemed to form part of the scheme to which it relates.

15.—(1) The responsible authority may by an order (in this Act referred to as a “general development order”) permit building operations to proceed, subject to such conditions as may be specified in the order, on any land as respects which the provisions of a scheme prohibit or restrict building operations pending the coming into operation of a general development order. General development orders.

A general development order may be made with respect to the whole, or some part only, of the land which is subject to the prohibitions or restrictions and orders may be made from time to time so long as any part of that land remains so subject.

A general development order shall require the approval of the Department, and the Department may approve any such order with or without modification.

(2) Without prejudice to the power of the responsible authority to make a general development order at any time, it shall be the duty of every responsible authority within a period of three months from the expiration of every third year after the coming into operation of the scheme to take into consideration the desirability of making such an order with respect to all land which remains subject to the prohibitions or restrictions.

(3) Any person aggrieved by the failure of the responsible authority to make, as respects any land in which he is interested, a general development order within the aforesaid period of three months may appeal to the Department within two months after the expiration of such period of three months and the Department on any such appeal may, if they think fit, make a general development order, and an order so made by them shall have effect as if it were an order made by the responsible authority and approved by the Department.

(4) A general development order may be revoked or varied by a subsequent general development order made by the same authority, but so long and in so far as it continues to be operative shall be deemed to form part of the scheme to which it relates.

Power to
permit
building
operations
pending the
coming into
operation of
a general
develop-
ment order.

16.—(1) Where the provisions of a scheme prohibit or restrict building operations on any land pending the coming into operation of a general development order, a person who, before such an order comes into operation with respect to that land, desires to commence thereon any building operations which would contravene any such temporary prohibition or restriction may, in accordance with such directions, if any, as may be contained in the scheme, apply to the responsible authority for their consent to the carrying out of the operations specified in the application.

(2) The responsible authority shall, in deciding any such application, have regard to any injury likely to be caused to the applicant by the refusal of the application, as well as to any public advantage likely to result from the maintenance of the prohibition or restriction, pending the coming into operation of a general development order, and may, if they are satisfied that the proposed operations will not contravene any permanent provisions of the scheme, grant the application unconditionally, or subject to such conditions as they think proper to impose :

Provided that, where the authority have power under this subsection to grant an application, they shall not refuse that application unless they are satisfied that other land suitable for such building operations as are specified in the application is available on reasonable terms and either—

- (a) that the operations would involve danger or injury to health by reason of the lack of roads, sewers, water supply or any public services and that the provision of the necessary services would be premature, or likely to involve excessive expenditure of public money; or
- (b) that the operations would be likely seriously to injure the amenity of the locality.

(3) Any person aggrieved by the refusal of any such application as aforesaid, or by any conditions imposed by the responsible authority, may within twenty-eight days from the date on which he received notice of the decision of the authority or such longer period as the Department may allow, appeal to the Department, and the Department may dismiss or allow the appeal, either unconditionally, or subject to such conditions as they think proper to impose.

The decision of the Department on an appeal under this subsection shall be final and shall have effect as if it were a decision of the authority.

Orders for Preservation of certain Buildings.

17.—(1) Where a resolution to prepare or adopt a scheme has taken effect, the local authority of any district which, or any part of which, is situate within the area to which the resolution applies, may at any time

Power to make orders for preservation of certain buildings.

make an order with respect to any building of special architectural or historic interest within that area and within the district of the local authority directing that without their consent the building shall not be demolished, and may at any time vary or revoke an order so made by them.

(2) Subject as hereinafter provided no such order, and no variation or revocation of such an order, shall take effect unless and until the order, variation, or revocation, as the case may be, has been approved, with or without modifications, by the Department, and the Department before approving it shall consider any representations made to them by the owner of the building, or by any other person, and shall consult with the Commissioners of Works :

Provided that, if it appears to the Department, after consultation with the Commissioners of Works, that the order should take effect immediately, they may make a declaration to that effect, and in that case the order shall come into operation so soon as a copy of the order and of the declaration is served on the owner and occupier of the building, but shall cease to have effect at the expiration of two months from the date of the declaration unless it has been previously approved by the Department under this subsection.

(3) Where the owner of a building with respect to which an order made under this section is in force has applied to the local authority to vary or revoke the order, or to consent to its demolition, he may, if he is aggrieved by their refusal to vary or revoke the order, or to grant their consent, or by any terms imposed by them as a condition of their consent, appeal to the Department within twenty-eight days after the local authority have notified to him their decision.

On any appeal under this subsection, the decision of the Department shall be final, but before giving their decision they shall consult with the Commissioners of Works.

(4) Where an order has been made under this section, the coming into operation of a scheme for the area within which the building is situated shall not, unless the scheme so provides, operate as a revocation of the order.

(5) Nothing in this section shall—

(i) empower a local authority to make an order—

(a) with respect to any ecclesiastical building which is for the time being used for ecclesiastical purposes; or

(b) with respect to any building to which a scheme or order made under any enactment for the time being in force with respect to ancient monuments applies; or

(c) with respect to any building for the time being included in a list of monuments published by the Commissioners of Works, under any such enactment as aforesaid :

(ii) affect any powers of the Commissioners of Works under any such enactment as aforesaid.

Compensation and Betterment.

18.—(1) Subject to the provisions of this Act, any person—

(a) whose property is injuriously affected by the coming into operation of any provision contained in a scheme, or by the execution of any work under a scheme, or by the coming into operation of an order under section seventeen of this Act, being a provision, work or order which infringes or curtails his legal rights in respect of that property; or

(b) who suffers damage by reason of any action taken by a responsible authority under section thirteen of this Act; or

(c) who for the purpose of complying with any provision contained in a scheme, or in making or resisting a claim under the provisions of this Act relating to compensation and betterment, has incurred expenditure which is rendered abortive by a subsequent variation or revocation of the scheme,

Provisions
as to com-
pensation
for injurious
affection,
&c.

shall, if he makes a claim within the time limited for the purpose by this Act, be entitled to recover as compensation from the responsible authority, or, if his claim arises out of the coming into operation of an order under section seventeen of this Act, from the local authority

by whom the order was made, the amount by which his property is decreased in value, and, in the case of property on which he has carried on a trade or business or profession, the amount of any resulting injury to that trade or business or profession, or the amount of his damage, or, so far as it was reasonably incurred, the amount of the abortive expenditure, as the case may be.

(2) In awarding any compensation payable in respect of property injuriously affected by the coming into operation of any provision contained in a scheme, account shall be taken of any additional injurious affection of the property by reason that since the commencement of this Act the Department have refused, on an appeal made to them under an interim development order, to grant an application for permission to develop the property, or that the Department have imposed any conditions on the grant of such an application made since that date.

Power of
Department
to exclude
compensa-
tion in cer-
tain classes
of cases.

19.—(1) Subject to the provisions of this section, a scheme may provide, either generally or as respects all property except such as may be specified for the purpose in the scheme, that no compensation shall be payable under paragraph (a) of subsection (1) of the last preceding section in respect of the injurious affection of property by the coming into operation of any provision of the scheme which—

- (a) prescribes the space about buildings; or
- (b) limits the number of buildings; or
- (c) regulates, or empowers the responsible authority to regulate, the size, height, design or external appearance of buildings; or
- (d) prohibits or restricts building operations only pending the coming into operation of a general development order; or
- (e) prohibits or restricts building operations permanently on the ground that, by reason of the situation or nature of the land, the erection of buildings thereon would be likely to involve danger or injury to health, or excessive expenditure of public money in the provision of roads, sewers, water supply or other public services; or

- (f) prohibits (otherwise than by way of prohibition of building operations) the use of land for a purpose likely to involve danger or injury to health, or serious detriment to the neighbourhood, or restricts (otherwise than by way of restriction of building operations) the use of land so far as may be necessary for preventing such danger, injury, or detriment; or
- (g) restricts the manner in which buildings may be used; or
- (h) in the interests of safety regulates or empowers the responsible authority to regulate the height and position of proposed walls, fences or hedges near the corners or bends of roads, other than highways maintainable at the material date by the Minister of Transport, a county council, or other highway authority; or
- (i) limits the number, or prescribes the sites, of new roads entering a classified road, or a road, or the site of a proposed road, which is declared by the Minister of Transport to be intended to be a classified road; or
- (k) in the case of land which at no time within the period of five years immediately preceding the material date was or formed part of, the site of a building, fixes in relation to any street or proposed street a line beyond which no building in that street or proposed street may project; or
- (l) in the case of the erection of any building intended to be used for purposes of business or industry, requires the provision of accommodation for loading, unloading or fuelling vehicles with a view to preventing obstruction of traffic on any highway.

(2) The Department shall not approve the insertion in a scheme of a provision excluding compensation under the last preceding subsection or themselves insert in a scheme such a provision—

- (i) unless they are satisfied that, having regard to the objects of the scheme, the provision in respect of which compensation is to be excluded is proper and reasonable and expedient having regard to the local circumstances;

- (ii) if the provision in respect of which compensation is to be excluded is such a provision as is mentioned in paragraph (a), (b), (c), (d), or (g) of the said subsection, unless the scheme contains also provisions satisfactory to them, for securing that—

(a) existing buildings may be maintained and their existing use continued; and

(b) reasonable alterations and, in proper cases, extensions of existing buildings may be made; and

(c) where an existing building or a building which was standing within two years before the material date is destroyed or demolished, a new building having at least an equal cubic content above the level of the ground and, in addition, in the case of premises used for business or industry, at least an equal superficial area on the ground floor, may be erected on the same site, if commenced within two years after the destruction or demolition of the previous building, or within such longer period as the responsible authority may permit; and

(d) a new building so substituted as aforesaid may be used for any purpose of the same or a similar character as that for which the previous building was last used before its destruction or demolition, notwithstanding that its use for that purpose would be contrary to the provisions of the scheme, unless such a use is declared in the scheme to be both contrary to the provisions thereof and also of a noxious or otherwise offensive character;

- (iii) if the provision in respect of which compensation is to be excluded is such a provision as is mentioned in paragraph (f) of the said subsection, in so far as that provision—

(a) prohibits or restricts the winning of minerals by underground working;

(b) prohibits or restricts as respects any land the winning of minerals by surface

working unless the land is reserved by the scheme, and has been substantially developed, for residential purposes; or

(c) prohibits or restricts as respects any land so reserved the winning by surface working of minerals, if the Department are satisfied, upon representations being made to them, that the minerals, or the right to win the minerals, had before the material date been acquired by some person for the purpose of winning them, or had before that date devolved upon some person desirous of winning them;

- (iv) if the provision in respect of which compensation is to be excluded is such a provision as is mentioned in paragraph (i) of the said subsection, unless they are satisfied, if representations are made to them in any particular case, and the case appears to them to be a proper one, that reasonable means of access from neighbouring land to a highway will be provided;
- (v) if the provision in respect of which compensation is to be excluded is such a provision as is mentioned in paragraph (k) of the said subsection, and, so far as concerns any particular land, unless they are satisfied, if representations are made to them as respects that land, that the area of the land of the owner fronting the street or proposed street will not be diminished to such an extent by the fixing of the building line as to render it less suitable for the erection of buildings in conformity with the provisions of the scheme.

(3) Notwithstanding the insertion in a scheme of such provisions satisfactory to the Department as are mentioned in paragraph (ii) of the last foregoing subsection, if and in so far as any alteration or extension of an existing building, or the substitution of a new building for a previous building, being an alteration, extension, or substitution which is authorised by, or might be permitted under, the said provisions, would not be in conformity with, or would contravene, any provision of the scheme, the

responsible authority may prohibit that alteration, extension or substitution, but in that case the person whose property is injuriously affected by the prohibition shall, if he makes a claim within twelve months after receiving notice of the prohibition, be entitled, notwithstanding anything in subsection (1) of this section, to recover compensation in respect of that injurious affection from the responsible authority in accordance with the provisions of this Act.

(4) Notwithstanding the insertion in a scheme of such provisions satisfactory to the Department as are mentioned in paragraph (ii) of subsection (2) of this section, if and in so far as the continuance of any existing building or of any existing use of an existing, altered, extended or substituted building is not in conformity with, or contravenes, any provisions of the scheme, nothing in that subsection shall be construed as precluding the responsible authority from exercising at any future time their powers under section thirteen of this Act in respect of that use, subject, however, to payment of compensation in accordance with the provisions of paragraph (b) of subsection (1) of section eighteen of this Act.

(5) In considering whether they ought to approve the insertion in a scheme of a provision excluding compensation, or ought themselves to insert such a provision, the Department shall have regard to—

- (a) the nature and situation and existing development of the land affected by the provision in respect of which compensation is excluded and of neighbouring land not so affected; and
- (b) the interests of any person who would be affected by the provision in respect of which compensation is excluded.

Exclusion or limitation of compensation in certain other cases.

20.—(1) No compensation shall be payable under this Act in respect of any property on the ground that it has been injuriously affected by any provision contained in a scheme, if and in so far as the same provision or a provision substantially to the same effect was, at the date when the scheme came into operation, already in force by virtue of some Act, not being either this Act or an Act repealed by this Act.

(2) A person shall not be entitled to recover compensation under this Act in respect of any action taken by a responsible authority under section thirteen of this Act except in a case where a building or work which the authority have removed, pulled down or altered, was an existing building or an existing work, or a use of a building or land which they have prohibited was an existing use.

(3) Where any provision contained in a scheme could immediately before the date on which the scheme came into operation have been validly included in a scheme, order, regulation, or byelaw by virtue of any other Act in force at that date, then—

(a) if no compensation would have been payable in respect of injury caused by the coming into operation of that provision in that other scheme, or that order, regulation or byelaw, no compensation shall be payable in respect of that provision of the scheme under this Act; and

(b) if compensation would have been so payable, the compensation payable in respect of that provision of the scheme under this Act shall not be greater than the compensation which would have been so payable.

(4) Where any provision of a scheme, whether made under this Act or under any Act repealed by this Act, is revoked by a subsequent scheme, no compensation shall be payable in respect of any property on the ground that it has been injuriously affected by any provision contained in the subsequent scheme if and in so far as that later provision is the same, or substantially the same, as the earlier provision so revoked; but if at the date when the revocation of that earlier provision becomes operative—

(a) there is still outstanding any claim for compensation duly made thereunder; or

(b) the time originally limited for making such a claim has not expired,

any such outstanding claim and any such claim made within the time so limited shall be entertained and determined, and may be enforced, in the same manner in all respects as if all the provisions of the earlier scheme had continued in operation.

Recovery of
betterment
from owners
of property
increased in
value.

21.—(1) Where by the coming into operation of any provision contained in a scheme, or by the execution by a responsible authority of any work under a scheme, any property is increased in value, the responsible authority, if within twelve months after the date on which the provision came into operation or such longer period as may be specified in the scheme, or within twelve months after the completion of the work, as the case may be, they make a claim in that behalf, may, subject to the provisions of this Act, recover from the person whose property is so increased in value an amount not exceeding seventy-five per cent. of the amount of that increase :

Provided that, except where the person against whom the claim is made has claimed from the responsible authority, by way of compensation under this Act in connection with the scheme and in respect of any injurious affection other than injurious affection immediately suffered, an amount not less than the amount claimed by the responsible authority under this section and the claim for compensation has been allowed in an amount not less than the amount claimed by the responsible authority as aforesaid, or is outstanding, that person may at any time within twenty-eight days after service on him of the claim give notice in writing to the responsible authority requiring them to defer the claim, and in that event the claim shall be withdrawn.

(2) Where a notice has been given in respect of any property under the last preceding subsection, the responsible authority shall be entitled to make a fresh claim against the person who gave the notice in respect of any increase in the value of the property due to the coming into operation of any provision contained in the scheme or by the execution by the authority of any work under the scheme—

- (a) on the taking effect at any time within fourteen years from the date of service of the said notice of a disposition of the property ;
- (b) on the taking place at any time within the said period of fourteen years of a change of use of the property ;
- (c) in the case of property which was at the date of the original claim used for the purposes of any business or industry, and in respect of which

there has not within the period of five years next after the date of the service of the notice been made any claim under paragraph (a) or (b) of this subsection, at any time within a period of twelve months after the expiration of the said period of five years :

Provided that no claim shall be made—

- (i) under paragraph (b) of this subsection if the new use of the property is a use as arable, meadow or pasture ground, or as market gardens, nursery grounds, orchards or allotments, or for a plantation or a wood, or for the growth of saleable underwood, or as allotment gardens within the meaning of the Allotments (Scotland) Act, 1922, or (being 12 & 13
Geo. 5. c. 52. land which exceeds one quarter of an acre) for the purpose of poultry farming; and
- (ii) under paragraphs (b) or (c) of this subsection in the case of property belonging to a statutory undertaker.

(3) If a claim is made on a disposition of property or, in the case of property used for the purposes of any business or industry, on the expiration of the said period of five years, the responsible authority may recover a sum not exceeding seventy-five per cent. of the amount by which the property has been increased in value by the coming into operation of the provision or by the execution of the work in respect of which the original claim was made, and the date of the fresh claim shall be the date by reference to which the increase in value shall be determined, and thereafter no further claim shall be made under this section in respect of that property.

(4) If a claim is made on a change of use of property taking place, the responsible authority may recover a sum not exceeding seventy-five per cent. of the amount by which the property has for the purposes of its new use been increased in value by the coming into operation of the provision or by the execution of the work in respect of which the original claim was made and, on any subsequent change of use taking place or upon any disposition of the property taking effect within the period of fourteen years a fresh claim may be made.

(5) In assessing the amount of any sum payable under this section in respect of any property, account shall be taken—

- (a) of any principal sum paid or payable to the responsible authority in respect of the property under a claim previously made under this section; and
- (b) of any gift of property whether heritable or moveable, or any concession made or any works executed under arrangement with the responsible authority, by any person against whom the claim under this section in respect of the property is made or his predecessors in title, with a view to facilitating the making or carrying into effect of the scheme.

(6) Any sum recoverable under this section may be paid either immediately or by such instalments spread over a period not exceeding thirty years as may be agreed or determined under this Act, and where payment is made by instalments interest at such rate as may from time to time be fixed by the Treasury shall be chargeable on the aggregate amount of the instalments for the time being outstanding, but notwithstanding any such agreement or determination the person from whom such instalments are due may, on giving not less than six months' notice in writing to the responsible authority of his intention so to do, pay to them the whole of any outstanding instalments, together with any interest accruing due thereon to the date of payment.

(7) A person who gives a notice under subsection (1) of this section shall, within one month after the date on which any such disposition as is mentioned in paragraph (a) of subsection (2) of this section takes effect, or any such change of use as is mentioned in paragraph (b) of the said subsection (2) takes place, give written notice thereof to the responsible authority and shall, within one month after receiving from the responsible authority a demand in that behalf (which demand shall be made not later than the expiration of two months after the giving of the notice), furnish to the authority such particulars as they may reasonably require for the purposes of this section :

Provided that, if at any time the responsible authority make a claim which under the provisions of subsection (3)

of this section is final, they shall notify the person who gave the notice under subsection (1) of this section that no further notice of disposition or change of use need be sent.

(8) A claim made on a disposition of property taking effect, or on a change of use taking place, shall be made not later than the expiration of twelve months from the date on which notice is given to the responsible authority under subsection (7) of this section of the disposition or change of use, or, where particulars are demanded by the authority, the date on which the particulars are furnished to the authority :

Provided that a claim made on the granting of a lease or tack which is for a term of less than seven years shall be made not earlier than the expiration of the seventh year from the date on which the said term commenced.

(9) The provisions of this section shall apply to a disposition of, or a change of use of, a part of any property in respect of which notice has been given under subsection (1) of this section as they apply in relation to a disposition of, or a change of use of, the whole of that property.

(10) Where any provision of a scheme, whether made under this Act or under any Act repealed by this Act, is revoked by a subsequent scheme, no property shall be deemed to be increased in value by any provision contained in the subsequent scheme if and in so far as that provision is the same, or substantially the same, as a provision contained in the scheme so revoked :

Provided that, if at the date when the revocation of the said scheme becomes operative there is still outstanding any claim in respect of an increase in the value of any property duly made thereunder, or the time originally limited for making such a claim has not expired, any such outstanding claim, and any such claim made within the time so limited, shall be entertained and determined and may be enforced, in the like manner in all respects as if all the provisions of the earlier scheme had continued in operation.

(11) In this section the expression "disposition" means a disposition by way of feu or sale (including a sale in consideration of a ground annual or other similar periodical payment) or the grant of a lease or tack

for a period of not less than three years, and references to the person who gives a notice under subsection (1) of this section shall, where the property to which the notice relates has, since the notice was given, been the subject of transmission otherwise than by disposition, be construed as references to the person to whom the property was last so transmitted before the date on which a disposition takes effect or a change of use takes place.

(12) For the purposes of this section a change of use of property shall not be deemed to have occurred if the character of the new use is similar to that of the previous use.

Making of
claims for
compensa-
tion or
betterment.

22.—(1) A claim under this Act for compensation or in respect of an increase in the value of any property shall be made by serving upon the authority or person from whom the amount alleged to be payable is claimed, a notice in writing stating the grounds of the claim and the amount claimed.

(2) Subject to the provisions of this Act, a claim under this Act for compensation may be made within twelve months after the date on which the provision giving rise to the claim came into operation or within such longer period as may be specified in the scheme, or, if the claim is a claim for compensation in respect of action taken by a responsible authority under section thirteen of this Act, or in respect of the coming into operation of an order under section seventeen of this Act, or in respect of expenditure rendered abortive by the variation or revocation of a scheme, within twelve months after the date on which the action was completed, or the order came into operation, or the variation or revocation of the scheme became operative.

(3) Where it is alleged that land which, at or within two years before the material date, formed the site of a building has been injuriously affected by a provision fixing, in relation to any street or proposed street, a line beyond which no building in that street or proposed street may project, then, subject to any agreement to the contrary, the period within which a claim for compensation may be made in respect of that land shall be a period of twelve months after the date on which a new

building is erected on the site in conformity with the line so fixed :

Provided that, if in the case of any such land a claimant alleges in his claim, and proves to the satisfaction of the arbiter, that it is not reasonably practicable to erect any new building on that land in conformity with the line so fixed, and, where the building is standing at the date on which the scheme comes into operation, has before commencing to demolish the building given notice to the responsible authority in accordance with the provisions of the next succeeding subsection, a claim made by him at any time within a period of twelve months after the date on which the building is demolished or the date on which the scheme comes into operation, whichever last occurs, shall be deemed to be validly made and shall be entertained by the arbiter.

(4) A person who intends to claim compensation in respect of any such land as is mentioned in the proviso to the last preceding subsection shall, if the building is standing at the date on which the scheme comes into operation, not less than three months before he commences to demolish the building, give notice in writing of his intention to the responsible authority, and that authority may, at any time before the expiration of two months from the receipt by them of the notice, require him to sell to them the site and the buildings thereon, and thereupon the provisions of this Act with respect to the compulsory acquisition of land by a responsible authority shall apply in relation to that site and any buildings thereon as they apply in relation to land required by such an authority for the purposes of a scheme.

(5) Where it is alleged that property has been injuriously affected by the execution of any work, the period within which a claim in respect of that injurious affection may be made shall be a period of twelve months after the completion of the work.

- 23.—**(1) Any question arising under this Act as to—
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|---|---|
| <p>(i) the right of a claimant to recover compensation;
or</p> <p>(ii) the right of an authority to recover any amount in respect of an increase in the value of any property; or</p> | <p>Determina-
tion of
claims and
recovery of
amounts
due.</p> |
|---|---|

- (iii) the amount and manner of payment, whether immediately or by instalments spread over a period not exceeding thirty years, of any such recoverable compensation or amount as aforesaid,

shall, unless the authority and all persons concerned otherwise agree, be referred to and determined by an official arbiter to be appointed in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act, 1919, who shall have the like powers with respect to procedure (including the hearing of claims and objections together), costs, and the statement of special cases as he has under that Act.

(2) The arbiter or other person charged with the duty of determining any such question as aforesaid—

- (i) shall have regard to any undertaking which either the local authority or joint committee by whom the scheme was prepared, or the responsible authority, or the person against whom the claim is made, may have given; and
- (ii) if the question arises out of the coming into operation of a supplementary scheme or a supplementary order, shall take into account any amount which the responsible authority have paid or are liable to pay, or have recovered or are entitled to recover, in respect of that property by reason of the coming into operation of the original scheme, or any other scheme or order supplemental thereto; and
- (iii) if any contribution has been made by an authority under the provisions of this Act relating to interim development orders, shall take into account that contribution.

(3) Any amount due as compensation from a responsible authority and any amount due to an authority from a person whose property is increased in value may be recovered summarily as a civil debt.

Power to withdraw or modify provisions of scheme after award of compensation.

24.—(1) The responsible authority may, at any time within one month after the date of an award of compensation under this Act in respect of the injurious affection of any property, give notice to the claimant of their intention to withdraw or modify all or any of the provisions of the scheme which gave rise to his claim for compensation.

(2) Where such a notice has been given, the responsible authority shall within three months from the date of the notice submit for the approval of the Department a varying scheme carrying into effect such withdrawal or modification as aforesaid, and upon the varying scheme, as approved by the Department with or without modifications, coming into operation, and upon payment by the authority of the claimant's costs of and in connection with the arbitration, the award of the arbiter shall be discharged, without prejudice, however, to the right of the claimant to make a further claim for compensation under paragraph (c) of subsection (1) of section eighteen of this Act or in respect of the scheme as varied.

(3) No award of compensation under this Act in respect of the injurious affection of any property shall be enforceable before the expiration of one month from the date thereof, or if a notice has been given by the authority under subsection (1) of this section, until after the expiration of three months from the date of the notice, or, if within that period a varying scheme is submitted to the Department, until that scheme has either come into operation, or been disapproved by the Department, or quashed by a court.

Purchase of Land.

25.—(1) The responsible authority may purchase by agreement any land to which a scheme, whether made under this Act or under any Act repealed by this Act, applies, which they require for the purposes of the scheme, as if those purposes were purposes of the Public Health (Scotland) Act, 1897, and, where the responsible authority are not a local authority having power to acquire land for the purposes of that Act, as if they were such an authority, and in particular, but without prejudice to the generality of the foregoing words, they may purchase any such land—

Acquisition
of land
to which
scheme
applies.

- (a) which they require for carrying out the improvement or controlling the development of frontages to, or of lands abutting on or adjacent to, any highway which is maintainable at the public expense, or any proposed highway which is to be constructed wholly or partly at the public expense; or

- (b) which they require for securing the satisfactory development of any land in accordance with the provisions of the scheme in any case where, by reason of the land being held in plots which are of inconvenient size or shape, or of which the arrangement or alignment is inconvenient, or by reason of the multiplicity of interests in the land, or by reason of the fact that the land is being used in a manner or for purposes inconsistent with the provisions of the scheme, it does not appear to be reasonably practicable to secure such development otherwise than by purchase of the land; or
- (c) which forms the site of a highway which has been stopped up under any provision contained in the scheme; or
- (d) which they require for the purpose of providing accommodation for a person whose premises have been purchased by them for the purposes of the scheme.

(2) Where the responsible authority are unable to purchase by agreement any land which they are authorised by the foregoing provisions of this section to purchase, they may, subject as hereinafter provided, be authorised to purchase that land compulsorily by means of an order (in this Act referred to as a "compulsory purchase order") made and submitted to the Department and confirmed by them in accordance with the provisions of Part I of the Third Schedule to this Act :

Provided that they shall not be authorised to purchase any land compulsorily for the purpose of subparagraph (d) of the foregoing subsection.

(3) The provisions of Part III of the First Schedule to this Act shall have effect with respect to the validity of compulsory purchase orders made under this Act and the dates on which they are to come into operation.

(4) Where land within the district of a local authority is comprised in a scheme, whether made under this Act or under any Act repealed by this Act, and the local authority are not the responsible authority, the provisions of this section with respect to the purchase of land, whether by agreement or compulsorily, by a responsible

authority shall apply to the local authority as if that authority were the responsible authority.

(5) The responsible authority may, with the consent of, and subject to any conditions imposed by, the Department, purchase by agreement land comprised in a scheme, whether made under this Act or under any Act repealed by this Act, notwithstanding that the land is not immediately required for the purposes of the scheme.

(6) The powers of purchasing land under this section shall be subject to the restrictions contained in Part II of the Third Schedule to this Act.

26. Where a scheme, whether made under this Act or under any Act repealed by this Act, has come into operation, and the town council of any burgh or any county council require for the purposes of a public open space or a playing field any land to which the scheme applies, the provisions of the last preceding section with respect to the purchase of land, whether by agreement or compulsorily, by a responsible authority shall apply in relation to that land and to the council as if that council were the responsible authority and required that land for the purposes of the scheme.

Acquisition of land for open spaces and playing fields in area covered by planning scheme.

Supplemental Provisions with respect to Schemes.

27.—(1) Where provision is made in a scheme for the construction, widening, or improvement of any road or street, and for charging the cost, or any part of the cost, thereof upon the owners of adjoining land or other persons deriving benefit therefrom, the scheme shall secure that the cost so charged shall not exceed the amount which would at the date of the commencement of the works have been the cost of the execution of street works in the course of the construction, widening, or improvement if it had been carried out so as to comply with any enactments, byelaws, or regulations in operation in the area and, as respects matters for which no provision is made in any such enactments, byelaws, or regulations, so as to comply with such specification as the highway authority for the area would at the date of the commencement of the works have required as a condition of taking over the road or street as a highway maintainable at the public expense.

Limitation of street work charges.

(2) In this section the expression "street works" means the sewerage, levelling, paving, metalling, flagging, channelling and making good a road or street or part of a road or street, and the expressions "construction" and "improvement" in relation to any road or street include the planting, laying out, maintenance and protection of trees, shrubs, and grass margins, in and beside the road or street.

Power to contribute towards expenses of owners in connection with the proposal of schemes.

28. It shall be lawful for a local authority or joint committee to contribute towards the expenses incurred by owners of land in or in connection with the proposal of a scheme which is adopted by the local authority or joint committee or in co-operating with them in the preparation of a scheme.

Contributions by local authorities towards expenses of, or in connection with, schemes.

29. It shall be lawful for the town council of any burgh or any county council to contribute towards the expenses incurred by any authority in or in connection with matters preliminary to the preparation of a scheme or in or in connection with the preparation or carrying into execution of a scheme whether made under this Act or any Act repealed by this Act.

Contributions by statutory undertakers towards expenses of, or in connection with, schemes.

30. It shall be lawful for any statutory undertakers to pay to any authority the whole or any part of any expenses incurred by that authority in, or in connection with, the preparation or carrying into execution of a scheme, whether made under this Act or under any Act repealed by this Act.

Application of betterment as capital.

31. All sums received by a responsible authority by way of betterment, or as proceeds of sale of any land purchased under the powers conferred by this Act, shall be applied either in the repayment of debt or for any other purpose for which capital money may be properly applied.

Power of public departments to make agreements in connection with schemes.

32.—(1) For the purpose of co-operating with any local authority or joint committee who are preparing a scheme, or with any responsible authority who are carrying into effect a scheme, whether made under this Act or under any Act repealed by this Act, any public department may, subject to the approval of the Treasury, enter into agreements for securing that any land which is under their control, or which is in their

occupation or vested in them for public purposes or for the public service, shall, so far as may be provided by any such agreement, be laid out and used in conformity with the general objects of the scheme, and any agreement so made may contain such consequential and incidental provisions, including provisions of a financial character, as appear to be necessary or desirable having regard to the contents or proposed contents of the scheme :

Provided that the department concerned in making an agreement under this section, and the Treasury in considering whether their approval shall or shall not be given to the agreement, shall have regard to the purposes for which the land in question was acquired, or is held, by the department.

(2) Section twelve of the Crown Lands Act, 1927 (which relates to the power of the Commissioners of Crown lands to make agreements in connection with town planning schemes), shall cease to have effect. 17 & 18
Geo. 5. c. 23.

33.—(1) Where any person is willing to agree with any such authority as is mentioned in subsection (2) of this section that his land, or any part thereof, shall, so far as his interest in the land enables him to bind it, be made subject, either permanently or for a specified period, to conditions restricting the planning, development, or use thereof in any manner in which those matters might be dealt with by or under a scheme, the authority may, if they think fit, enter into an agreement with him to that effect, and if the agreement shall have been recorded in the appropriate register of sasines, it shall be enforceable at the instance of the authority against persons deriving title to the land from the person with whom it was entered into : Power of
authorities
and owners
to enter into
agreements
restricting
use of land.

Provided that no such agreement shall at any time be enforceable against a third party who shall have in bonâ fide onerously acquired right (whether completed by infestment or not) to the land prior to the agreement being recorded as aforesaid or against any person deriving title from such third party.

(2) Agreements may be entered into under this section by a local authority, or a responsible authority, not being a local authority.

(3) This section shall come into force upon the passing of this Act.

Provisions as to Garden Cities.

Acquisition
of land for
purpose of
garden
cities.

34.—(1) Where the Department are satisfied that any local authority or two or more local authorities jointly, or any authorised association, are prepared to purchase any land and develop it as a garden city, or as an extension of an existing garden city, and have funds available for the purpose, they may, with the consent of the Treasury and after consultation with the Board of Trade, the Department of Agriculture for Scotland, and the Minister of Transport, acquire that land on behalf of the authority or association, either by agreement or compulsorily, in any case in which it appears to the Department necessary or expedient so to do for the purpose of securing the development of the land as aforesaid, and may do all such things as may be necessary to vest the land so acquired in the local authority or association.

(2) The provisions of this Act relating to the powers of a responsible authority to acquire land for the purposes of a scheme, shall, with any necessary modifications, apply for the purpose of the acquisition of land by the Department under this section, and the Department in exercising their powers of acquiring land under this section shall be subject to the same conditions as are applicable in relation to the acquisition of land under this Act by a responsible authority :

Provided that, in the case of an order for the compulsory acquisition of land on behalf of an authorised association, the order shall be laid before each House of Parliament and shall not be confirmed by the Department unless and until both Houses by resolution have approved the order, nor, if any modifications are agreed to by both Houses, otherwise than as so modified.

(3) A local authority may acquire land, either by agreement or compulsorily, for any of the purposes for which land may be acquired under subsection (1) of this section, as if it were land comprised in a scheme which was required by a responsible authority for the purposes of the scheme.

(4) Any land acquired under the foregoing provisions of this section shall be developed in accordance with proposals approved by the Department.

(5) Subject to such conditions as the Treasury may impose and up to an amount approved by the Treasury,

the Public Works Loan Commissioners may advance by way of loan to any authorised association such money as the association may require for the purpose of developing the garden city in accordance with proposals approved by the Department under this section, and the provisions of the Housing (Scotland) Act, 1925, with respect to loans by those Commissioners to a public utility society for the purpose of the purchase and development of land under Part III of that Act shall, subject to the provisions of this section, apply to advances made in pursuance of this subsection.

15 & 16
Geo. 5. c. 15

The power to make advances under this subsection shall be exercised during such a period as the Treasury may determine.

(6) Any authorised association shall have power, notwithstanding anything in their rules or constitution prohibiting the payment of interest on loan capital at a rate exceeding six per cent. per annum, to raise money on loan for the purposes of this section at a rate of interest not exceeding the rate for the time being fixed by the Treasury.

(7) In this section—

The expression “local authority” means the town council of any burgh or any county council:

The expression “garden city” includes garden suburb or garden village, and “authorised association” means any society, company or body of persons approved by the Department whose objects include the promotion, formation, or management of garden cities and the erection, improvement or management of buildings for the working classes and others, and which does not trade for profit or whose constitution forbids the issue of any share or loan capital with interest or dividend exceeding the rate for the time being fixed by the Treasury.

Powers of Department.

35.—(1) If the Department are satisfied after the holding of a local inquiry that a scheme ought to be prepared by any authority as respects any land, they may by order require the authority to prepare a scheme and to take such other steps as may be necessary for bringing

Power of
Department
to require
prepara-
tion or
adoption

of scheme,
and to
require
execution
of scheme.

it into operation, and the order of the Department shall have the same effect as a resolution to prepare a scheme for the area to which the order relates passed by the authority and approved by the Department.

(2) If the authority fail to prepare a scheme to the satisfaction of the Department within such time as may be specified in the order, or to take any other steps which they are required by this Act, or by regulations made thereunder, or by order of the Department thereunder, to take, the Department may themselves act in the place and at the expense of the authority.

(3) If the Department are satisfied after the holding of a local inquiry that any authority have failed to adopt any scheme proposed by owners of land in a case where a scheme ought to be adopted, they may order the authority to adopt the scheme proposed, or if they think fit, may themselves approve the proposed scheme with or without modifications, and a scheme so approved by them shall be deemed to have been adopted by the authority and approved by the Department.

(4) If the Department are satisfied after the holding of a local inquiry that a responsible authority have failed to enforce effectively the observance of a scheme which has come into operation or any provisions of such a scheme (whether being a scheme made under this Act or being a scheme made under any Act repealed by this Act), or to execute any works or do any things which under the scheme or this Act the authority are required to execute or do, the Department may, if they think fit, themselves act in the place and at the expense of the authority or may, with the approval of the Lord Advocate, apply by summary petition to either division of the Court of Session or during vacation or recess to the Lord Ordinary on the Bills for an order on the authority to do all things necessary for remedying their default and for carrying into execution the scheme: and such division or Lord Ordinary are hereby authorised and directed to do in such petition and to dispose of the expenses of the proceedings as to the said division or Lord Ordinary shall appear to be just.

(5) The Department shall furnish a copy of the report made to them by the person who holds a local inquiry directed by this section to every authority

concerned and, on payment of such fee as may be fixed by the Department, to any person interested.

(6) Any expenses incurred by the Department in exercising under this section any powers of any authority shall be paid, in the first instance, out of moneys provided by Parliament, but the amount of those expenses as certified by the Department shall, on demand, be paid by the authority to the Department and shall be recoverable as a debt due to the Crown.

(7) The payment of any such expenses as aforesaid shall, to such extent as may be sanctioned by the Department, be a purpose for which an authority may borrow money in accordance with the provisions of this Act or of the scheme under which the authority are constituted.

36.—(1) The Department may make regulations for regulating generally the procedure to be followed in connection with the preparation or adoption of schemes or orders, other than compulsory purchase orders, and for prescribing anything which is by this Act required or authorised to be prescribed. Regulations
as to pro-
cedure.

(2) Regulations shall be made under subsection (1) of this section in relation to the matters specified in the headings of the several paragraphs of Part I of the Fourth Schedule to this Act, and those regulations shall, subject as provided in Part II of the said Schedule in relation to the matters specified in the heading thereof, be to the effect stated in those paragraphs respectively.

(3) Regulations made by the Department under this Act shall, so soon as may be after they are made, be laid before each House of Parliament, and if either House of Parliament, within the next subsequent twenty-one days on which that House has sat after any such regulation has been laid before it, resolves that the regulation shall be annulled, the regulation shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of a new regulation.

37.—(1) For the purposes of the execution of their powers and duties under this Act, the Department may cause to be held such local inquiries as are directed by this Act and such other local inquiries as they may think fit, and the costs incurred in relation to any such local Local
inquiries.

inquiry shall be paid by the authorities and persons concerned in the inquiry, or by such of them and in such proportions as the Department may direct, and the Department may certify the amount of the costs incurred, and any sum so certified and directed by the Department to be paid by any authority or person shall be a debt to the Crown from such authority or person.

(2) The provisions of the Public Health (Scotland) Act, 1897, with respect to inquiries which the Department may cause to be held for the purposes of that Act, shall apply in relation to any local inquiry which they may cause to be held in pursuance of this Act.

Legal Proceedings.

Stated case
to Court of
Session.

38. Where under the provisions of a scheme an appeal is submitted to the Department, the Department may, on the application of any party to the appeal at any stage of the proceedings, and shall, if so directed by either division of the Court of Session, state a case on any question of law arising in the appeal for the opinion of either division of the Court of Session, and the procedure in the stated case shall be such as may be prescribed by Act of Sederunt: and the provisions of any scheme made before the commencement of this Act under which an appeal on any question of law shall lie to the Court of Session against a decision of the Department shall cease to have effect.

Power to
refer certain
disputes to
arbitration
or to De-
partment.

39.—(1) Where under this Act, or any scheme made thereunder, an appeal lies, or an application may be made, to the sheriff, it shall be lawful for the persons who would be parties to the appeal or application to agree in writing either that the matter in dispute shall be determined by the Department, or that it shall be referred to the arbitration of such person as may be agreed upon or, in default of agreement, appointed by the Department.

(2) Where under this Act, or any scheme made thereunder, an appeal lies to the Department, or any question is to be determined by them, it shall be lawful for the persons who would be parties to the appeal, or between whom the question is raised, to agree in writing that the matter in dispute shall be referred to the arbitration of such person as may be agreed upon or, in default of agreement, appointed by the Department.

(3) Where any such agreement as aforesaid is made, the Department or the arbiter, as the case may be, shall have power to make any such order or determination as, in the absence of such agreement, might have been made by the sheriff or by the Department.

(4) A determination of the Department or of an arbiter under this section shall be final.

Miscellaneous Provisions.

40.—(1) No provision contained in a scheme shall apply to any land or any building erected thereon which for the time being belongs to any statutory undertakers and is held or used by them for the purposes of their undertaking, except in so far as they may consent to any particular provision of the scheme being made applicable to any such land or building :

For the protection of statutory undertakers.

Provided that their consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be decided by the Department; but the Department, before giving their decision, shall, where any other Government department are concerned with the functions of the undertakers, consult with that department and shall, if the undertakers whose consent is sought so desire, afford them an opportunity of appearing before and being heard by one or more persons appointed for the purpose by the Department and the other Government department concerned acting jointly.

(2) If, in connection with the giving by statutory undertakers of any consent under this Act, any question arises as to whether any or as to which Government department are concerned with the functions of any statutory undertakers, the question shall be referred to and determined by the Treasury whose decision shall be final.

41. Where representations are made to the Department that a provision in a scheme submitted for their approval will involve the removal, pulling down, or alteration of a building of special architectural or historic interest, they shall, before approving the scheme, consult with the Commissioners of Works.

Consultation of Commissioners of Works as to schemes affecting certain buildings.

Land in
neighbour-
hood of
royal
palaces and
parks.

42.—(1) Where a local authority or joint committee propose to include in a scheme any land which is situate within the prescribed distance from any of the royal palaces or parks, or where an authority propose to acquire any such land under this Act, they shall, before preparing the scheme or acquiring the land, communicate with the Commissioners of Works, and the Department shall, before approving the scheme or authorising the acquisition of the land or the raising of any loan for the purpose, take into consideration any recommendations which they may have received from the Commissioners of Works with reference to the proposal.

(2) For the purposes of this section, “prescribed” means prescribed by regulations made by the Department after consultation with the Commissioners of Works.

Works
below high-
water mark.

43. Nothing in this Act shall authorise the execution of any works whether of construction, demolition or alteration on, over or under tidal lands below high-water mark of ordinary spring tides, except with the consent of any persons whose consent would have been required if this Act had not been passed, and except in accordance with such plans and sections and subject to such restrictions and conditions as, previous to such works being commenced, have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Saving for
Postmaster-
General.
41 & 42 Vict.
c. 76.

44. The expression “Act of Parliament” in section seven of the Telegraph Act, 1878 (which makes provision as to work done in pursuance of Acts of Parliament which involves alteration in telegraphic lines), shall be construed as including a scheme under this Act.

Powers as
to the pre-
servation of
trees.

45.—(1) The provisions to be inserted in a scheme with respect to securing amenity and the protection of existing amenities may include provisions for the preservation of single trees and groups of trees, and in addition may specify areas of woodland as areas to be protected under this section.

(2) Where an area is so specified, the scheme may impose an obligation on the owner, if any part of the woodland is felled, to undertake such replanting as would be in accordance with the practice of good forestry, but

save as aforesaid the scheme shall not impose any control over forestry operations in the area.

(3) If any question arises between the responsible authority and the owner whether any replanting of land carried out or proposed to be carried out by the owner is or would be in accordance with the practice of good forestry, it shall, on the application of either party, be determined by the Forestry Commissioners, whose decision shall be final.

46.—(1) Where it appears to the responsible authority that an advertisement displayed or a hoarding set up in the area to which a scheme applies seriously injures the amenity of land specified in the scheme as land to be protected under this Act in respect of advertisements, the authority may serve in the prescribed manner upon the owner of the advertisement or hoarding a notice requiring him to remove it within such period, not being less than twenty-eight days from the date of service of the notice, as may be specified therein, and where any such notice is served a copy thereof shall be served in the prescribed manner upon the owner and occupier of the land on which the advertisement or hoarding is displayed or set up.

Powers with
respect to
advertisements.

(2) If a person upon whom a notice or a copy of a notice has been served under the last foregoing subsection on any date desires to allege that the advertisement or hoarding to which the notice relates does not seriously injure the amenity of any land specified in the scheme as aforesaid he may, by giving notice of appeal within twenty-eight days from that date, appeal to the sheriff.

(3) If on any such appeal as aforesaid the sheriff is satisfied that the advertisement or hoarding does not seriously injure the amenity of any land specified in the scheme as aforesaid, the sheriff shall allow the appeal, but if he is not so satisfied the sheriff shall dismiss the appeal, so, however, that the sheriff may by his order postpone the date for compliance with the requirements of the notice to such date, not being later than the expiration of twenty-eight days from the date of the order, as he thinks fit.

(4) If the owner of an advertisement or hoarding upon whom a notice has been served under subsection (1) of this section does not comply with the requirements of

the notice within the period therein specified, then, unless an appeal in respect of the notice is made under this section and allowed, the authority may, at any time after the expiration of that period or, if the sheriff on an appeal under this section postpones the date for compliance with the requirements of the notice, after the date specified in the order, enter upon the land upon which the advertisement or hoarding is displayed or set up and remove the advertisement or hoarding and recover from the owner thereof the expenses of such removal and on any proceedings for the recovery of such expenses the defender shall not be entitled to raise by way of defence any matter which might have been raised by him on an appeal under this section.

(5) Where a scheme specifies any land in the area to which the scheme applies as land to be protected under this Act in respect of advertisements, the scheme may contain provisions enabling the responsible authority subject to such conditions as may be specified in the scheme to authorise the display of any particular class of advertisements, either unconditionally or subject to any conditions in respect of the position or manner in which, or the period during which, the advertisements may be displayed, and conferring upon any person aggrieved by a decision of the responsible authority in relation to such authorisation as aforesaid a right of appeal to the sheriff.

(6) The powers conferred upon a responsible authority by subsections (1) and (4) of this section shall not be exerciseable—

- (i) in respect of advertisements the display of which is authorised as provided by the last foregoing subsection;
- (ii) in respect of advertisements which relate solely to a trade or business carried on, or to an entertainment, meeting, auction or sale to be held, upon or in relation to the land upon which the advertisements are displayed, and which conform with any provisions contained in the scheme with respect to the size, position, and manner of display of such advertisements;
- (iii) in respect of advertisements on the door or in the window of a building which conform with any such provisions as aforesaid;

- (iv) during the period of five years from the coming into operation of the scheme, in respect of hoardings erected or in use for advertising purposes before the date when the resolution to prepare or adopt the scheme took effect, or advertising stations used by advertising contractors at that date, or in respect of advertisements displayed on any such hoarding or station at any time during that period, or in respect of advertisements displayed at that date.

(7) Property shall not, for the purposes of the provisions of this Act relating to compensation and betterment, be deemed to be injuriously affected or increased in value by the provisions of this section or anything done or suffered thereunder.

(8) Save as provided by this section, a scheme shall not contain any provision prohibiting or controlling the erection or use of structures for the purpose of advertising :

Provided that the foregoing provisions of this subsection shall not render unlawful the insertion in a scheme of a provision which prohibits the erection on any land of buildings generally, or under which buildings generally could be removed from any land, if that provision is required for a purpose other than the prevention of injury to amenity by advertisements or hoardings.

(9) In this section the expression " hoarding " means any hoarding or similar structure erected or used for the purpose of advertising; and the expression " owner " means, in relation to an advertisement displayed by a person carrying on the business of an advertising contractor, that person, and means, in relation to any other advertisement, the person to whose goods, trade, business, or other concerns publicity is given by the advertisement.

47.—(1) A local authority may, subject to the provisions of this section, appoint a committee for any of the purposes of this Act, which, in the opinion of the authority, would be better regulated and managed by means of a committee, and may delegate to the committee, with or without restrictions or conditions

Appoint-
ment of
committees
for purposes
of Act.

as they think fit, any of their powers under this Act except the power of levying a rate or borrowing money.

(2) A committee appointed under this section shall consist of such number of persons as the local authority think fit, but at least three-fourths of the members of the committee shall be members of the local authority.

Expenses
of, and
borrowing
by, local
authorities.

48.—(1) Any expenses incurred by a local authority under this Act shall be defrayed as if they were expenses incurred by the authority under the Public Health (Scotland) Act, 1897 :

Provided that, where expenses incurred by the town council of a small burgh under this Act are included in the sum for which a rate is levied by the council, the amount of the contribution payable by the town council on account of the expenditure of the county council under this Act shall be only such sum, if any, as will together with the amount of the aforesaid expenses of the town council amount to the sum which the town council would have been required to contribute if such expenses of the town council had been included in the expenditure of the county council under this Act.

(2) A local authority may borrow for the purposes of this Act in accordance with the provisions of section twenty-three of the Local Government (Scotland) Act, 1929.

Expenses of
town councils
of small
burghs and of
county coun-
cils not being
local autho-
rities under
this Act.

49. Any expenses incurred under this Act by the town council of a small burgh or by a county council who are not a local authority within the meaning of this Act, shall be defrayed out of such rate payable by owners and occupiers in equal shares as the council may determine and such council may borrow for any of the purposes of this Act.

Compensa-
tion to
officers.

50.—(1) Every officer of a council, who, in consequence of the delegation or transfer of any powers or duties of that council under any provision contained in sections two to five of this Act, suffers any direct pecuniary loss by determination of his appointment or by diminution or loss of fees, salary, or emoluments, and for whose compensation for that loss provision is not made by any other enactment for the time being in force, shall be entitled to recover compensation under this Act for that loss from that council.

(2) For the purposes of this section an officer of a council by or from whom any powers or duties are so delegated or transferred—

- (a) who at any time within five years after the date of the delegation or transfer, as the case may be, relinquishes office by reason of his having been required to perform duties which are not analogous to, or which are an unreasonable addition to, those which he was required to perform immediately before the said date; or
- (b) whose appointment is determined or whose salary is reduced within five years after the said date because his services are not required or his duties are diminished, and not on the ground of misconduct or inefficiency,

shall be deemed, unless the contrary is shown, to have suffered a direct pecuniary loss in consequence of that delegation or transfer.

(3) The provisions of the Second Schedule to the Rating (Scotland) Act, 1926, and of paragraph (i) of subsection (1) of section seven of the Local Government (Scotland) Act, 1929, shall apply in relation to claims for compensation under this Act as they apply in relation to claims for compensation under those Acts subject to such modifications as the Secretary of State may by order provide for the purpose of adapting those provisions to cases arising under this Act. 16 & 17
Geo. 5. c. 47.

(4) In this section the expression “ officer ” includes servant.

51.—(1) Where before the commencement of this Act a local authority have, in pursuance of authority given by the Department under subsection (2) of section one of the Town Planning (Scotland) Act, 1925, resolved to prepare a scheme under that subsection for the limited purposes therein mentioned, they may, notwithstanding the repeal of the said subsection, prepare and make a scheme for those purposes, without prejudice, however, to their power to pass at any time a resolution to prepare or adopt with respect to the same area, or any part thereof, a scheme for any of the purposes mentioned in section one of this Act. Transitional
provisions.
15 & 16
Geo. 5. c. 17.

(2) Where an application for authority to prepare or adopt a scheme has been granted, or a resolution to prepare or adopt a scheme has taken effect, but the scheme to be prepared in pursuance of that application or resolution, or, as the case may be, the scheme so adopted, has not at the commencement of this Act come into operation, the application or resolution shall have effect as if it were a resolution passed by the authority and approved by the Department under this Act, and the existing provisions which immediately before that date regulated the service of notices in the area in question and the procedure in connection with the preparation or adoption of schemes, and the submission of schemes to the Department, and consideration and approval thereof by them shall, whether those provisions were contained in regulations made by the Department under the Town Planning (Scotland) Act, 1925, or were contained partly in such regulations and partly in a local Act, continue to apply in relation to that scheme :

Provided that the Department may by general or special order direct that in certain classes of case, or in any particular case, the provisions of this Act with respect to the matters aforesaid shall apply instead of such existing provisions as aforesaid to such extent, and with such modifications, as they may think fit.

Interpreta-
tion.

52. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say :—

“ Buildings ” includes structures and erections ;

“ Building operations ” includes any road works preliminary, or incidental, to the erection of buildings ;

“ Classified road ” means a road classified by the Minister of Transport under the Ministry of Transport Act, 1919, in Class 1 or Class 2, or in any class declared by him to be not inferior to those classes for the purposes of the Local Government (Scotland) Act, 1929 ;

“ Development,” in relation to any land, includes any building operations or rebuilding operations, and any use of the land or any building thereon for a purpose which is different from the

9 & 10
Geo. 5. c. 50.

purpose for which the land or building was last being used :

Provided that—

(i) the use of land for the purpose of agriculture, whether as arable, meadow, pasture ground or orchard, or for the purposes of a plantation or a wood, or for the growth of saleable underwood, and the use for any of those purposes of any building occupied together with land so used, shall not be deemed to be a development of that land or building ; and

(ii) the use of land within the curtilage of a dwelling-house for any fresh purpose other than building operations shall not be deemed to be a development of that land if the purpose is incidental to the enjoyment of the dwelling-house as such ;

“ Department ” means the Department of Health for Scotland ;

“ Large burgh ” and “ small burgh ” have the respective meanings assigned to them in the Local Government (Scotland) Act, 1929 ;

“ Fence ” and “ hedge ” have respectively the same meanings as in the Roads Improvement Act, 1925 ; 15 & 16
Geo. 5. c. 68.

“ Joint committee ” means a joint committee appointed under section three or under section four of this Act, or under any repealed enactment relating to town planning ;

“ Land ” includes land covered with water and any right in or over land ;

“ Minerals ” includes all minerals and substances in or under land of a kind ordinarily worked for removal by underground or by surface working ;

“ Owner ” includes any person who under the Lands Clauses Acts would be enabled to sell and convey land to the promoters of an undertaking ;

“ Prescribed ” means prescribed by regulations made by the Department ;

“ Statutory undertakers ” means any person authorised by or under an Act of Parliament, or an

order having the force of an Act of Parliament, to construct, work, or carry on any railway, canal, inland navigation, dock, harbour, tramway, gas, electricity, water, or other public undertaking;

“Scheme” means a scheme under this Act, and, save as otherwise expressly provided in this Act, includes a supplementary scheme and a scheme varying or revoking an existing scheme;

“Site” in relation to a building includes the area of any offices, out-buildings, yard, court or garden occupied or intended to be occupied therewith;

“The material date” means, in relation to any provision contained in a scheme, other than a supplementary scheme or a varying scheme, the date on which the resolution to prepare or adopt the scheme took effect or such later date as may be fixed by the scheme, either generally or for the purposes of any particular provision thereof, and in relation to any provision contained in a supplementary scheme or a varying scheme or a supplementary order means the date on which the scheme or order came into operation, or such later date as may be fixed by the scheme or order, either generally or for the purposes of any particular provision thereof :

Provided that, where any provision of a scheme or order is revoked by a subsequent scheme or order which contains the same provision or a provision substantially to the same effect, the material date in relation to that later provision shall be the date which, if the earlier provision had continued in operation, would have been the material date in relation thereto;

“Existing building” and “existing work” mean respectively a building or work erected, constructed or carried out before the material date, and include also a building or work—

(i) erected, constructed or carried out in pursuance of a contract made before the material date; or

(ii) begun before, but completed after, that date; or

(iii) erected, constructed or carried out in accordance with the terms of an interim development order, whether made under this Act or any Act repealed by this Act, or of permission granted under such an order :

Provided that—

(a) a building erected or constructed in substitution for a previous building in accordance with the provisions of the scheme relating to substituted buildings shall be deemed to be an existing building; and

(b) a building shall not cease to be, or to be deemed to be, an existing building by reason of its alteration or extension in accordance with the provisions of the scheme relating to the alteration or extension of existing buildings, and any such alteration or extension shall itself be deemed to be part of the existing building;

“ Existing use ” means, in relation to any building or land, a use of that building or land for any purpose of the same or a similar character to that for which it was last used before the material date, or, in the case of a newly erected building which has not been used before that date, a use for any purpose for which it was designed, and includes in any case any use of a building or land permitted by or under an interim development order, whether made under this Act or any Act repealed by this Act :

Provided that—

(i) if at any time after the material date the existing use of a building is discontinued for a period of eighteen months, no use of that building at any subsequent date shall be deemed to be an existing use thereof;

(ii) where at the material date a person who was using any land for the purpose of mining, quarrying, the digging of clay, gravel or sand, or the deposit of waste materials or refuse, or any other purpose of a similar nature, was entitled also to use neighbouring land for any such purpose, the user under that title of that neighbouring land for any such purpose, whether before or after the material date, shall be deemed to be an existing use.

Repeals.

53.—(1) The enactments mentioned in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule, and, subject to the provisions of subsection (2) of section fifty-one of this Act, such of the provisions of any local Act, including any local Act passed on the same day as this Act, as modify the provisions of the Town Planning (Scotland) Act, 1925, in its application to a particular locality are also repealed :

Provided that—

- (a) nothing in this repeal shall affect any appointment, scheme, order, regulation, or agreement made, or any approval, consent or notice given, under any enactment repealed by this Act, and any such appointment, scheme, order, regulation, agreement, approval, consent or notice may be enforced and carried into effect as if this Act had not been passed, but may be amended, varied, repealed or revoked under this Act;
- (b) where at the commencement of this Act there is outstanding any claim for compensation duly made under any Act repealed by this Act, or any claim so made for any amount in respect of an increase in the value of property, or the time limited by or under any such repealed Act for making such a claim has not expired, that outstanding claim, and any such claim made within the time so limited, shall be entertained and may be enforced in the same manner in all respects as if this Act had not been passed;

- (c) a reference in any document to any Act or enactment repealed as aforesaid, or to a town planning scheme under any such Act, shall be construed as a reference to this Act or the corresponding enactment in this Act, or to a scheme under this Act;
- (d) the provisions of a local Act, in so far as they effect a transfer of functions exerciseable under the Town Planning (Scotland) Act, 1925, from one authority to another or regulate the manner in which any such functions are to be exercised where such a transfer has been so effected, shall be excepted from the repeal by this section of the provisions of local Acts.

(2) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

52 & 53 Vict.
c. 63.

54. In approving any scheme, or exercising or performing any other powers or duties under this Act the Department shall have regard to the powers and jurisdiction of the dean of guild court in burghs.

Department
to have regard
to powers of
dean of guild
court.

55. This Act may be cited as the Town and Country Planning (Scotland) Act, 1932, and, except as otherwise expressly provided, shall come into operation on the first day of April, nineteen hundred and thirty-three.

Short title
and com-
mencement.

S C H E D U L E S.

FIRST SCHEDULE.

Sections 8
and 25 (3).

PART I.

PROVISIONS AS TO THE LAYING OF SCHEMES BEFORE PARLIAMENT.

1. Where a scheme is approved or made by the Department, they shall cause it to be laid forthwith before both Houses of Parliament.

1ST SCH.

—cont.

2.—(1) A scheme which contains a provision suspending the operation of a statutory enactment, other than an enactment which is an excepted enactment for the purposes of this paragraph, shall not be capable of coming into operation until a resolution approving the suspensory provision has been passed by each House of Parliament.

(2) For the purposes of this paragraph the following are excepted enactments :—

- (a) subsection (1) of section thirty-two of the Public Health (Scotland) Act, 1897;
- (b) section one hundred and fifty-eight of the Burgh Police (Scotland) Act, 1892, as extended by subsection (2) (h) of section one hundred and four of the Burgh Police (Scotland) Act, 1903;
- (c) section five of the Roads Improvement Act, 1925, as applied to Scotland by section twelve of that Act;
- (d) any enactment making such provision as might, by virtue of any Act of Parliament, have been made in relation to the area to which the scheme applies by means of a byelaw, order, or regulation not requiring confirmation by Parliament;
- (e) any enactment which has been previously suspended by some other scheme which came or was capable of coming into operation, and any enactment having substantially the same effect as any such enactment.

3. Subject as aforesaid a scheme approved or made as aforesaid shall be capable of coming into operation in accordance with the provisions of Part II of this Schedule unless—

- (1) either House of Parliament within a period of twenty-one days on which that House has sat after the scheme has been laid before it resolves that the scheme or some provision thereof ought not to come into operation; or
- (2) on a motion that a provision in the scheme be approved or that the scheme or some provision thereof ought not to come into operation an undertaking is given by, or on behalf of, the Department to modify the scheme.

4. If in the case of any scheme—

- (1) a resolution to approve a suspensory provision contained in the scheme is not agreed to by either House of Parliament; or
- (2) it has been resolved by either House of Parliament that the scheme or some provision contained therein ought not to come into operation; or

- (3) there has in relation to the scheme been given any such undertaking as is mentioned in paragraph three of this Part of this Schedule,

1ST SCH.
—cont.

the following provisions shall have effect :—

- (a) if the scheme is a scheme which was prepared or adopted by a local authority or joint committee, it may be modified by the Department in like manner, and the like further proceedings may be taken thereon, as if the Department had not approved it;
- (b) if the scheme is a scheme which was made by the Department, a new scheme may be made by them in like manner, and the like proceedings may be taken thereon as if the first mentioned scheme had not been made.

PART II.

PROVISIONS AS TO THE VALIDITY AND DATE OF OPERATION OF SCHEMES.

1. So soon as may be after a scheme has, regard being had to the provisions of Part I of this Schedule, become capable of coming into operation, the local authority or joint committee by whom the scheme was prepared or adopted, or is deemed to have been prepared or adopted, shall publish in a local newspaper a notice in the prescribed form stating that the scheme has been laid before both Houses of Parliament and is capable of coming into operation and naming a place where a copy of the scheme and of any map therein referred to may be seen at all reasonable hours, and shall serve a like notice on every person to whom this Act or the regulations made by the Department thereunder require notice to be given.

2. If any person aggrieved by a scheme desires to question the validity thereof, or of any provision contained therein, on the ground that it is not within the powers of this Act, or that any requirement of this Act, or of any order or regulation made thereunder, has not been complied with in relation to the scheme, he may, at any time within six weeks after the date on which the notice required by the provisions of paragraph one of this Part of this Schedule is published, make an application for the purpose by summary petition to the Court of Session.

3. The Court of Session, on an application made under this Part of this Schedule—

- (a) may by interim order suspend the operation of the scheme, or of any provision contained therein, either generally or in so far as it affects any property of the applicant, until the final determination of the proceedings; and

1ST SCH.
—cont.

(b) if satisfied that the scheme, or any provision contained therein, is not within the powers of this Act, or that the interests of the applicant have been substantially prejudiced by any requirement of this Act, or of any order or regulation made thereunder, not having been complied with, may quash the scheme or any provision contained therein, either generally or in so far as it affects any property of the applicant.

4. Subject to the provisions of paragraphs two and three of this Part of this Schedule, the validity of a scheme shall not, either before or after it has been approved or made, be called in question in any legal proceedings whatsoever, and shall become operative at the expiration of six weeks from the date on which the notice required by the provisions of paragraph one of this Part of this Schedule is published.

5. Except by leave of the Court of Session no appeal shall lie to the House of Lords from a decision of the Court of Session under this Part of this Schedule.

6. The validity of a provision in a scheme which has been approved by resolution passed by each House of Parliament shall not be called in question on any ground under the provisions of this Part of this Schedule or in any legal proceedings whatsoever, nor shall any such provision be suspended or quashed under the provisions of this Part of this Schedule.

PART III.

PROVISIONS AS TO THE VALIDITY AND DATE OF OPERATION OF COMPULSORY PURCHASE ORDERS.

1. So soon as may be after a compulsory purchase order has been confirmed by the Department, the authority by whom the order was made shall publish in a local newspaper a notice in the prescribed form stating that the order has been so confirmed and naming a place where a copy of the order and of any map therein referred to may be seen at all reasonable hours and shall serve a like notice on every person who, having given notice of his objection to the order, appeared at the local inquiry in support of his objection.

2. If any person aggrieved by a compulsory purchase order desires to question the validity thereof, or of any provision contained therein, on the ground that it is not within the powers of this Act or that any requirement of this Act or of any order or regulation made thereunder has not been complied with in relation to the order, he may within six weeks after the date on which notice of its confirmation is published in accordance with the provisions of the preceding paragraph make an application for

the purpose by summary petition to the Court of Session, and upon any such application the Court—

1ST SCH.
—cont.

- (a) may by interim order suspend the operation of the order or of any provision contained therein, either generally or in so far as it affects any property of the applicant, until the final determination of the proceedings; and
- (b) if satisfied that the order or any provision contained therein is not within the powers of this Act or that the interests of the applicant have been substantially prejudiced by any requirement of this Act or of any order or regulation made thereunder not having been complied with, may quash the order or any provision contained therein, either generally or in so far as it affects any property of the applicant.

3. Subject to the provisions of the last preceding paragraph, a compulsory purchase order shall not, either before or after it has been confirmed, be questioned in any legal proceedings whatsoever, and shall become operative at the expiration of six weeks from the date on which notice of its confirmation is published in accordance with the provisions of paragraph one of this Part of this Schedule.

4. Except by leave of the Court of Session, no appeal shall lie to the House of Lords from a decision of the Court of Session under this Part of this Schedule.

5. This Part of this Schedule does not apply to an order which is provisional only until confirmed by Parliament.

SECOND SCHEDULE.

Section 11.

MATTERS TO BE DEALT WITH BY SCHEMES.

- 1. Streets, roads and other ways, and stopping up or diversion of existing highways including kirk roads.
- 2. Buildings, structures, and erections.
- 3. Open spaces, private and public.
- 4. The reservation of sites for places of religious worship or for houses for the residence of officiating ministers or burial places in connection therewith.
- 5. The reservation of land as sites for aerodromes.
- 6. The prohibition, regulation, and control of the deposit or disposal of waste materials and refuse.

2ND SCH.
—cont.

7. Sewerage, drainage, and sewage disposal.
8. Lighting.
9. Water supply.
10. Ancillary or consequential works.
11. Extinction or variation of private rights of way and other servitudes.
12. Dealing with or disposal of land acquired by the responsible authority or by a local authority.
13. Power of entry and inspection.
14. Power of the responsible authority to remove, alter or demolish any obstructive work.
15. Power of the responsible authority to make agreements with owners, and of owners to make agreements with one another.
16. Power of the responsible authority or a local authority to accept any property whether heritable or moveable for the furtherance of the objects of any scheme, and provision for regulating the administration of any such money or property.
17. Application with the necessary modifications and adaptations of statutory enactments.
18. Carrying out and supplementing the provisions of this Act for enforcing schemes, and for that purpose imposing pecuniary penalties for breach of or failure to comply with schemes and making provision for the recovery thereof by summary proceedings before the sheriff.
19. Limitation of time for operation of scheme.
20. Co-operation of the responsible authority with the owners of land included in the scheme or other persons interested.
21. Charging on any land the value of which is increased by the operation of a scheme the sum required to be paid in respect of that increase, and for that purpose applying, with the necessary adaptations the provisions of any enactments dealing with charges for improvements of land.

Section 25.

THIRD SCHEDULE.

PART I.

PROVISIONS AS TO THE COMPULSORY ACQUISITION OF LAND.

1. A compulsory purchase order shall be in the prescribed form and shall describe by reference to a map the land to which

it applies, and shall incorporate, subject to the modifications hereinafter mentioned and any necessary adaptations—

3RD SCH.
—cont.

- (a) the Lands Clauses Acts (except sections ninety and one hundred and twenty to one hundred and twenty-five of the Lands Clauses Consolidation (Scotland) Act, 1845);
- (b) the Acquisition of Land (Assessment of Compensation) Act, 1919; and
- (c) sections seventy to seventy-eight of the Railways Clauses Consolidation (Scotland) Act, 1845.

2. A compulsory purchase order in respect of land forming the site of a highway which has been stopped up under a provision contained in a scheme shall not be submitted to the Department after the expiration of twelve months from the date on which the highway was stopped up.

3. The modifications, subject to which the Lands Clauses Acts and the Acquisition of Land (Assessment of Compensation) Act, 1919, shall be incorporated in the order are as follows :—

- (i) The arbiter shall not take into account any building erected or any improvement or alteration made or any interest in land created after the date on which notice of the order having been made is published in accordance with the provisions of this Schedule if, in the opinion of the arbiter, the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which a claim is made was not reasonably necessary and was carried out with a view to obtaining compensation or increased compensation;
- (ii) No person shall be required to sell a part only of any house, building or manufactory, or of any land which forms part of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, manufactory, park or garden unless the arbiter determines that in the case of a house, building or manufactory such part as is proposed to be taken can be taken without material detriment to the house, building or manufactory, or, in the case of a park or garden, that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house, and, if he so determines, he shall award compensation in respect of any loss due to the severance of the part so proposed to be taken, in addition to the value of that part, and thereupon the party interested shall be required to sell to the responsible authority that part of the house, building, manufactory, park or garden; and
- (iii) Where the land to which the order relates is land forming the site of a highway which has been stopped up under

3RD SCH.
—cont.

a provision contained in a scheme, any compensation payable shall be assessed on the basis that the land could not lawfully be used in any manner which, if the highway had not been stopped up, would have interfered with the right of the public to use that highway.

4. Before submitting the order to the Department the responsible authority shall—

- (a) publish in a local newspaper a notice in the prescribed form stating the fact of such an order having been made and describing the area comprised therein and naming a place where a copy of the order and of the map referred to therein may be seen at all reasonable hours; and
- (b) serve on every owner, lessee and occupier (except tenants for a month or a less period than a month) of any land to which the order relates, a notice in the prescribed form stating the effect of the order and that it is about to be submitted to the Department for confirmation, and specifying the time within and the manner in which objections thereto may be made.

5. If no objection is duly made by any of the persons upon whom notices are required to be served, or if all objections so made are withdrawn, the Department may, if they think fit, confirm the order with or without modification, but in any other case they shall, before confirming the order, cause a local inquiry to be held, and shall consider any objection not withdrawn and the report of the person who held the inquiry, and may then confirm the order either with or without modification :

Provided that—

- (i) the Department may require any person who has made an objection to state in writing the grounds thereof, and may confirm the order without causing a local inquiry to be held if they are satisfied that every objection duly made relates exclusively to matters which can be dealt with by the arbiter by whom the compensation is to be assessed;
- (ii) the order as confirmed by the Department shall not, unless all persons interested consent, authorise the responsible authority to purchase compulsorily any land which the order would not have authorised them so to purchase if it had been confirmed without modification.

6. For the purposes of this Schedule a notice may be served—

- (i) by registered post or by delivery to or at the residence of the person to whom it is addressed; or

- (ii) if the responsible authority are unable after reasonable enquiry to ascertain the name and address of the person upon whom it should be served, by addressing it to him—

3RD SCH.
—cont.

(a) by name, if his name is known; or

(b) if his name is not known, by the description of "owner" or "occupier" of the premises (naming them) to which it relates,

and by delivering it to some person on the premises, or, if there is no person on the premises to whom it can be delivered, by affixing it or a copy thereof to some conspicuous part of the premises.

PART II.

RESTRICTIONS ON ACQUISITION OF LAND.

1. The Department shall not confirm an order for the compulsory purchase of any land which is the site of an ancient monument or other object of archæological interest, unless they are satisfied that the monument or object is not being properly protected, preserved and maintained and that its acquisition by the responsible authority is necessary for securing its protection or preservation and maintenance.

2. The Department shall not confirm an order for the compulsory purchase of any land which belongs to any local authority within the meaning of the Local Authorities' Loans (Scotland) Acts, 1891 and 1893, or to any statutory undertakers unless the land is required for the widening of an existing highway and the authority or undertakers consent:

Provided that such consent shall not be unreasonably withheld, and any question whether or not consent is unreasonably withheld shall be decided by the Department, but the Department, before giving their decision as to whether or not the consent of any undertakers is unreasonably withheld, shall, where any other Government department are concerned with the functions of the undertakers, consult with that department and shall, if the undertakers so desire, afford them an opportunity of appearing before and being heard by one or more persons appointed for the purpose by the Department and the other Government department concerned acting jointly.

3. The Department shall not confirm an order for the compulsory purchase of any land forming the site of a highway which has been stopped up under a provision contained in a scheme if any person who, under section one hundred and twenty-one of the Lands Clauses Consolidation (Scotland) Act, 1845, is, or would upon a disposition thereof be, entitled to a right of pre-emption in

3RD SCH.
—cont.

respect of the land, has given notice of his desire to purchase the land, or if a right of pre-emption under the said section has been exercised in respect of the land.

4.—(i) Where a scheme or an order made in connection with a scheme authorises the acquisition or appropriation of any land forming part of any common, open space, or allotment, the scheme or order, so far as it relates to the acquisition or appropriation of such land, shall be provisional only, and shall not have effect unless and until it is confirmed by Parliament, except—

(a) where the scheme provides for giving in exchange for such land other land, not being less in area, certified by the Department, after consultation with the Department of Agriculture for Scotland, to be equally advantageous to the persons, if any, entitled to rights of common or other rights and to the public; or

(b) where such land is required for the widening of an existing highway and the Department, after consultation with the Department of Agriculture for Scotland, declare that the giving in exchange of other land is unnecessary either in the interests of the persons, if any, entitled to rights of common or other rights, or of the public.

(ii) Before giving any such certificate, or making any such declaration, the Department shall give public notice of the proposed exchange, or of their intention to make the declaration, and shall afford opportunity to all persons interested to make representations and objections in relation thereto, and shall, if necessary, cause a local inquiry to be held on the subject.

(iii) Where any scheme authorises such an exchange as aforesaid, it shall provide for vesting the land given in exchange in the persons in whom the common, open space or allotment was vested, subject to the same rights, trusts, and incidents as attached to the common, open space or allotment, and for discharging the part of the common, open space or allotment acquired or appropriated from all rights, trusts, and incidents to which it was previously subject.

(iv) For the purposes of this Part of this Schedule the expression “common” includes any town or village green; and the expression “open space” means any land laid out as a public garden or used for the purposes of public recreation and any disused burial ground; and for the purposes of paragraph 2 of this Part of this Schedule the expression “highway” shall not include a bridge by which a highway is carried over or under any railway, canal or navigable water, or the approaches to any such bridge, or the road carried by any such bridge and approaches.

FOURTH SCHEDULE.

Section 36.

PART I.

MATTERS IN RELATION TO WHICH REGULATIONS SHALL
BE MADE AND EFFECT TO BE SECURED THEREBY.

Paragraph 1. As to resolutions to prepare or adopt a scheme :—

- (i) that the area of the proposed scheme is defined by reference to a map showing by means of boundary lines the area of the land to which the resolution applies and indicating the land in the area which is already built upon;
- (ii) that notice by advertisement is given of the passing of the resolution and of facilities for inspection of the map, and for making suggestions for the inclusion or exclusion of land in or from the area of the proposed scheme;
- (iii) that suggestions made within the time specified in the notice are taken into consideration by the local authority or joint committee, and if not accepted by them or withdrawn are taken into consideration by the Department.

Paragraph 2. As to preliminary statements of proposals for development in cases where such a statement is submitted :—

- (i) that a draft statement is formulated to include such particulars of the proposed development as may be prescribed and is illustrated by a map which shall indicate, so far as is practicable, the proposals for development;
- (ii) that notice by advertisement is given of facilities for inspection of the draft and map and for making objections to the draft;
- (iii) that objections made within the time specified in the notice are taken into consideration by the local authority or joint committee and, if not met or withdrawn, are taken into consideration by the Department;
- (iv) that the statement is not submitted to the Department before the expiration of three months from the date when the service of notices of the taking effect of the resolution to prepare the scheme has been completed, and that the time within which the statement may be submitted is limited to a period not exceeding eighteen months from the date when the resolution took effect, with power for the Department to extend that period

4TH SCH.
—cont.

where they are satisfied that there are special circumstances warranting an extension of the period;

- (v) that the Department may hold a local inquiry as to objections;
- (vi) that notice by advertisement is given of the approval by the Department of the statement.

Paragraph 3. As to the preparation or adoption of schemes :—

- (i) that a draft scheme is formulated and is illustrated by a map showing so far as practicable particulars and details of the scheme and in particular proposed new roads or widening of existing roads;
- (ii) that notice by advertisement is given of facilities for inspection of the draft and map and for making representations and objections as to the draft;
- (iii) that representations and objections made within the period specified in the notice are taken into consideration by the local authority or joint committee.

Paragraph 4. As to the submission of schemes to the Department and consideration and approval thereof by them :—

- (i) that the time within which the scheme is to be submitted is limited to a period not exceeding, where a preliminary statement has been approved by the Department, eighteen months from the date of approval and not exceeding, in any other case, three years from the date when the resolution to prepare or adopt a scheme took effect, with power for the Department to extend these periods, respectively, where they are satisfied that there are special circumstances warranting an extension of period;
- (ii) that notice by advertisement is given of the submission of the scheme and of facilities for inspection of the scheme and map and for making objections to the scheme;
- (iii) that objections to the scheme made within the time specified in the notice are taken into consideration by the Department;
- (iv) that a local inquiry as to the scheme is held by the Department where any objections taken into consideration by them are not met or withdrawn;
- (v) that if the Department propose to modify the scheme, a copy of the scheme as proposed to be modified is furnished to the local authority or joint committee and notice by advertisement is given by the local authority

or joint committee of the intention of the Department to approve the scheme with modifications and of facilities for inspection of the scheme and map and for making objections to the scheme as intended to be approved;

4TH SCH.
—cont.

- (vi) that objections to any proposed modifications of the scheme made within the time specified in the notice are taken into consideration by the Department.

Paragraph 5. As to procedure generally in relation to the matters aforesaid :—

- (i) that co-operation with persons interested in land proposed to be included in a scheme or order is secured;
- (ii) that full information as to any proposal to prepare or adopt a scheme or order is given to the local authority of any district and to the town council of any small burgh in which land proposed to be included in the scheme or order is situate, or which such land immediately adjoins;
- (iii) that, where a resolution to prepare a scheme for land which is wholly or partly within a small burgh has taken effect, the town council, unless the resolution was passed by that council, are consulted with respect to the preparation of the scheme;
- (iv) that where under the foregoing provisions of this Schedule provision is required to be made by regulation for notice of facilities for inspection of any document, provision is made for access to be had thereto at all reasonable hours and without payment of a fee, and for the inclusion in the notice of particulars of the time and place at which such access may be had;
- (v) that where provision is required to be made as aforesaid for notice by advertisement of any document, the advertisement is published at least once during each of two successive weeks with an interval between each publication of at least six clear days in a newspaper circulating in the area to which the document relates;
- (vi) that where provision is required to be made as aforesaid for notice by advertisement of facilities for making suggestions, representations, or objections as to any matter, the time for the making thereof is not limited, in the case of suggestions as to the inclusion or exclusion of land in or from a scheme, to less than fourteen days from the date of the second publication of the advertisement or, in any other case, to less than twenty-one days from that date.

4TH SCH.
—cont.

PART II.

As to the preparation, adoption, submission, and approval of schemes varying or revoking a previous scheme, of supplementary schemes, and supplementary orders, and of general development orders—

The provisions of paragraph 3, of sub-paragraphs (ii), (iii), (iv), (v), and (vi) of paragraph 4, and of paragraph 5 of Part I of this Schedule shall apply in relation to the matters stated in the heading of this paragraph, provided that the regulations may reserve power to the Department to dispense with or modify all or any of the provisions aforesaid subject to such conditions, if any, as they may impose, in any case in which, having regard to the nature of the matters dealt with in the scheme or order, they are satisfied that there is reasonable cause for the dispensation or modification, and that no person will be prejudiced thereby.

Section 53.

FIFTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
15 & 16 Geo. 5. c. 17.	The Town Planning (Scotland) Act, 1925.	The whole Act.
17 & 18 Geo. 5. c. 23.	The Crown Lands Act, 1927	Section twelve.

CHAPTER 50.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March, one thousand nine hundred and thirty-three, and to appropriate the Supplies granted in this Session of Parliament.

[13th July 1932.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which